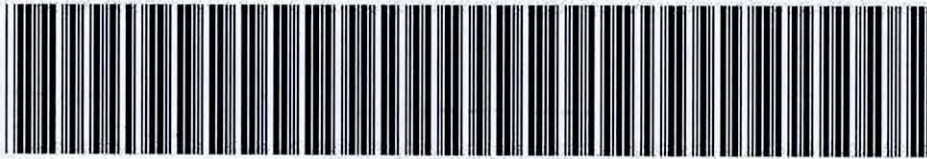


EWR D&I ANNOTATION



FAN-000001L121001DP114-9833

Artemis # : 000001L121001DP114**Record Created Date :** 08/23/2012**Printed Date :** 08/27/2012**Description :**

DI12-047. SEQ ID 114. 2012 Q1. 2006 CHEVY COBALT. WE RECEIVED A POLICE REPORT AND LAWSUIT REGARDING THE INCIDENT. THE DRIVER WAS TRAVELING AROUND A LEFT CURVE IN THE ROAD. THE VEHICLE ENDED UP GOING OFF THE RIGHT SIDE OF THE ROAD COLLIDING WITH A CULVERT AND CONTINUED TO OVERTURN AND HIT A TREE. THE DRIVER DIED IN THE INCIDENT. THERE IS NO SPEED GIVEN. THE LAWSUIT ALLEGES THAT THE POWER STEERING MALFUNCTIONED CAUSING IT TO GO OFF OF THE ROAD. THERE HAS NOT BEEN AN INSPECTION PERFORMED. THIS MODEL WAS INCLUDED IN A POWER STEERING RECALL (10V073) WHICH STATES THAT THE DRIVER MAY EXPERIENCE A SUDDEN LOSS OF POWER STEERING ASSIST THAT COULD OCCUR AT ANY TIME WHILE DRIVING. THE POWER STEERING MOTOR IS REPLACED TO REMEDY THE RECALL. *RM

Print

Close



U.S. Department
of Transportation
**National Highway
Traffic Safety
Administration**

1200 New Jersey Avenue SE.
Washington, DC 20590

CERTIFIED MAIL
RETURN RECEIPT REQUESTED

June 21, 2012

Ms. Carmen Benavides
General Motors Corp.
Mail Code 480-210-2V1
30001 Van Dyke
Warren, MI 48090

NVS-217kb
DI12-047

Dear Ms. Benavides:

The Office of Defects Investigation (ODI) of the National Highway Traffic Safety Administration (NHTSA) has received information about certain death and injury incidents reported by General Motors Corp. (GM) in its light early warning report from 1st quarter of 2012. We are writing to request additional information about the following incidents:

Selected Death and Injury Incidents	
For Reporting Category: L	
For the following Sequence IDs: 15, 98, 101, 103, 104, 114, 141, 143, 144, 149, 154, 155, 156, 157, 159, 160, 161, 162, 163, 164, 166, 168, 169, 181, 182, 185, 186, 190, 191, 204, 237, 238, 240, 241, 268, 273, 276, 303, 305, 308, 316, 317, 326, 376, 381, 406, 414, 416, 417, 422, 424, 425, 463	

Unless otherwise stated in the text, the following definitions apply to these information requests:

Incident: each incident identified in the above table.

Claim and Notice: shall have the meanings stated in 49 CFR §579.4(c). Claim and notice also specifically refer to the claim(s) and notice(s) that are the predicate for the early warning report on the incident.

Manufacturer: refers to GM.

Vehicle: the vehicle produced by GM that is identified in the claim or notice.

Tire: the tire produced by GM that is identified in the claim or notice.

Equipment: the item of motor vehicle equipment produced by GM that is identified in the claim or notice.

Defect: means any failure, malfunction, lack of durability, or other problem in performance, construction, a component, or material of a motor vehicle or piece of motor vehicle equipment.

Document: "Document(s)" is used in the broadest sense of the word and shall mean all written, typed, graphic and photographic matter whatsoever (except autopsy photographs), be it in original, copy or electronic form. Any photograph originally produced in color must be provided in color and in electronic form, if possible. Furnish all documents whether verified by GM or not. If a document is not in the English language, provide both the original document and an English translation of the document. Document(s) includes all documents in GM's custody and/or control.

Please provide numbered responses to the following inquiries, repeating the applicable request verbatim before each response. After GM's response to each request, identify the source of the information and indicate the last date the information was gathered. When documents are produced, the documents shall be produced in an identified, organized manner that corresponds to each pertinent information request. A separate response must be provided for each incident. Each response, document or attachment must be clearly identified with the incident Sequence ID (SeqID) number.

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.
2. Provide a copy of the Police Accident Report.
3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

If GM claims that any of the information or documents provided in response to this information request constitute confidential commercial material within the meaning of 5 U.S.C. § 552(b) (4), or are protected from disclosure pursuant to 18 U.S.C. § 1905, GM must submit supporting information together with the materials that are the subject of the confidentiality request, in accordance with 49 CFR Part 512, as amended (69 Fed. Reg. 21409 et seq; April 21, 2004), to the Office of Chief Counsel (NCC-110), National Highway Traffic Safety Administration, 1200 New Jersey Avenue, S.E., Washington, D.C. 20590. GM is required to submit two copies of the documents containing allegedly confidential information (except only one copy of blueprints) and one copy of the documents from which information claimed to be confidential has been deleted. Please remember that the words "CONFIDENTIAL BUSINESS INFORMATION" must appear at the top of each page containing information claimed to be confidential, and the information must be clearly

identified in accordance with 5 U.S.C. § 512.6. If you submit a request for confidentiality for all or part of your response to this letter, that is in an electronic format (e.g., CD-ROM), your request and associated submission must conform to the new requirements in NHTSA's Confidential Business Information Rule regarding submissions in electronic formats (49CRF 512.(c)). See Federal Register, volume 72, page 59434 (October 19, 2007).

Your response to this letter, together with a copy of any confidentiality request, must be submitted to this office by **July 20, 2012**. Please include in your response the identification codes referenced on page one of this letter. If you are unable to provide all of the information requested within the time allotted, you must request an extension from me at (202) 366-7028, no later than five business days before the response due date. If all of the information requested by the original deadline is unavailable, you must submit a partial response by the original deadline with whatever information then is available, even if an extension is granted.

If you have any technical questions concerning this matter, please contact Mr. Leo Yon at (202) 366-7028 or by fax at (202) 366-7882.

Sincerely,

A handwritten signature in black ink, appearing to read "Leo Yon", with a stylized, flowing script.

Leo Yon, Acting Chief
Early Warning Division
Office of Defects Investigation
Enforcement



GENERAL MOTORS LLC
Global Interior and Safety Center

July 26, 2012

Ms. Christina Morgan, Chief
Early Warning Division, NVS-217
Office of Defects Investigation
National Highway Traffic Safety Administration
1200 New Jersey Ave, SE
Washington, DC 20590

JUL 27 2012

NVS-217kb
DI12-047

Dear Ms. Morgan:

This is General Motors' (GM) response to your inquiry dated June 21, 2012, regarding certain death and injury incidents reported by GM in its light vehicle early warning report from the 1st quarter of 2012.

GM's response is comprised of 53 disks for the incidents that are the subject of DI12-047.

Attachment "A" includes instructions for navigating the disk. Each disk, on its face, is identified by the NHTSA Sequence ID number, the Manufacturer's Unique ID number and the year, make and model of the vehicle involved in the incident, e.g., 15 368449393-740229 and 2011 BUICK LUCERNE. When the disk is launched, this identification number appears again along with all of the documents on the disk (including photographs and videos, if applicable) listed under "Filename". The first document listed under Filename is an index with the Request and Responses, e.g., identified as 15 368449393-740229_00_**Request and Responses**. The index is numbered 1 through 3 to correspond to Inquiries 1 through 3, which are repeated verbatim below. The index also details whether any documents responsive to each inquiry were located.

For example, the Inquiry and Response in the index
for the disk are as follows:

DI12-047
15 368449393-740229
2011 BUICK LUCERNE

Request for Information:

1. **Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.**

Response: See attached document.



2. Provide a copy of the Police Accident Report.

Response: See attached documents and photographs.

The remaining documents listed under Filename, reference the Manufacturer's Unique ID number along with the responsive Inquiry number. For example:

15 368449393-740229_01_001- is the first document responsive to Inquiry no.1.

15 368449393-740229_02_001- is the first document responsive to Inquiry no. 2.

Your inquiries and our corresponding replies are as follows:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See attached document.

The table below lists the incident that is the subject of DI12-047, by Reporting Category, Sequence ID, VIN and type of notice received by GM (as "notice" is commonly used, not as it is defined by 49 C.F.R. §579.4(c)). Incidents reported on GM's Early Warning Report Death and Injury worksheet fall into four categories: Lawsuit (LIT), NISM (Not In Suit Matters), Product Allegation Resolution (PAR) or Rumor (RMR). Lawsuit and NISM case types generally meet the §579.4(c) definition of "claim". PAR cases, in this context, refer to customer contacts in which an injury or fatality is alleged to have occurred as a result of a product defect, and are accompanied by a writing that may or may not meet the §579.4(c) definition of "claim" or "notice". Rumor incidents do *not* involve a written or verbal, implied or express allegation of a defect by a customer. Rather, rumor cases generally refer to incidents that GM learned of through the media, which were subsequently investigated further.

(53 Vehicles from the Light Vehicle Template)		
SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
15	1G4HC5EM0BU [REDACTED]	NISM
98	2G1FC3DD2B9 [REDACTED]	NISM
101	2G1FA1ED4B9 [REDACTED]	NISM
103	2G1FT1EW5B9 [REDACTED]	NISM
104	2G1FE1E3XC9 [REDACTED]	NISM
114	1G1AK55F767 [REDACTED]	LIT
141	1G1AD5F5XA7 [REDACTED]	LIT
143	1G1AB1F58A7 [REDACTED]	NISM
144	1G1AF5F52A7 [REDACTED]	NISM
149	1GCHTDFP4B8 [REDACTED]	NISM
154	1G1PF5S93B7 [REDACTED]	NISM
155	1G1PG5S93B7 [REDACTED]	NISM
156	1G1PF5S93B7 [REDACTED]	NISM
157	1G1PH5S99B7 [REDACTED]	NISM

SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
159	1G1PF5S95B7	NISM
160	1G1PG5S90B7	PAR
161	1G1PC5SH8B7	NISM
162	1G1PG5S90B7	PAR
163	1G1PF5S98B7	NISM
164	1G1PD5SH2B7	NISM
166	1G1PG5S91B7	NISM
168	1G1PC5SH2C7	NISM
169	1G1PG5SC9C7	NISM
181	2CNFLCEW5A6	NISM
182	2CNFLCEW1A6	NISM
185	2CNFLGEC9B6	NISM
186	2CNFLGEC1B6	NISM
190	2CNFLNE55B6	NISM
191	2GNALDEK6C1	NISM
204	3GNBAAFW8BS	NISM
237	2G1WF5E32C1	NISM
238	2G1WB5E35C1	NISM
240	UNKNOWN	NISM
241	2G1WC5E34C1	NISM
268	1G1ZC5E18BF	NISM
273	1G1ZB5E12BF	NISM
276	1G1ZC5E08CF	NISM
303	3GCPKSE38BG	NISM
305	1GCRKSE38BZ	NISM
308	1GCRKSE34BZ	NISM
316	1G1JA5SH9C4	NISM
317	1G1JA6SH3C4	NISM
326	1GNSCJE01CR	NISM
376	1G1RD6E45CU	PAR
381	1GKKRPED9BJ	NISM
406	3GTEC23019G	LIT
414	1GT220C81BZ	NISM
416	1GTHK33678F	NISM
417	1GT322CG4CF	NISM
422	2CTFLREC5B6	NISM
424	2CTALMECXB6	PAR
425	2GKALSEKXC6	NISM
463	2CKDL33F286	LIT

2. Provide a copy of the Police Accident Report.

Response: If available, see attached document(s) and photograph(s) on the enclosed disk(s).

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

Response: GM opts not to respond.

GM claims that certain information, in documents that are part of rumor, claim and lawsuit files maintained by the GM Legal Staff and its outside counsel, is attorney work product and/or privileged. That information includes notes, memos, reports, photographs and evaluations by attorneys (and by consultants, claims analysts, investigators and engineers working at the request of attorneys). GM is producing responsive documents from its rumor, claim and lawsuit files that are neither attorney work product nor privileged and withholding those that are attorney work product and/or privileged.

This response was compiled and prepared by this office upon review of documents retrieved by GM and does not include documents generated or received subsequent to the searches.

Please contact me at if you require further information.

Sincerely,



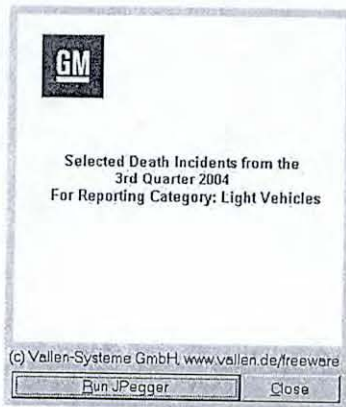
M. Carmen Benavides, Director
Product Investigations and Safety Regulations

Enclosures: 53 Disks
Attachment A

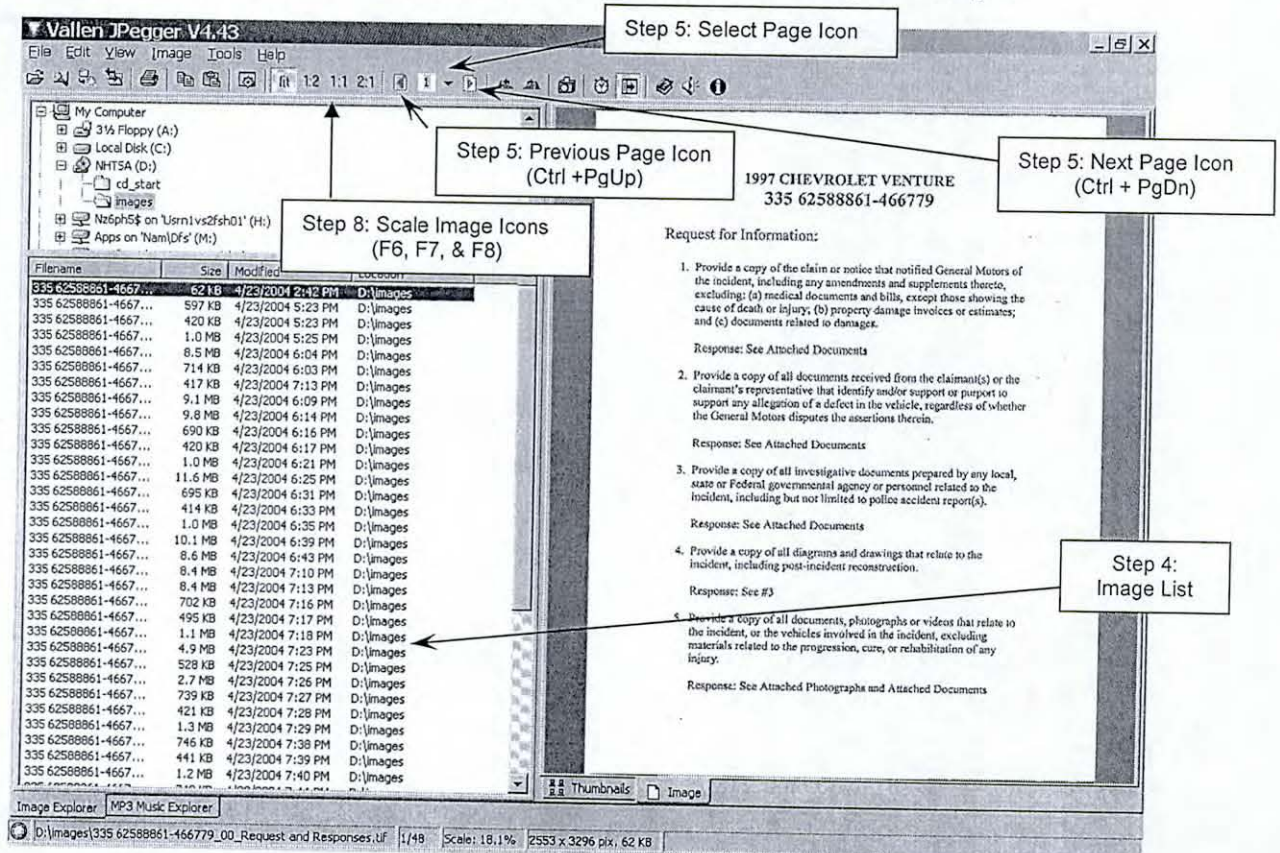
Attachment A

Instructions for using Disk Viewer

1. Insert the disk into the disk ROM drive; the disk will open automatically.
2. Click the "Run JPepper" button on the pop up window.



3. The program will launch in the browsing mode, which is shown in the image below.
4. You can use the down arrow key on your keyboard to browse through the images.



5. Each image file may contain multiple pages. In the browsing mode use **Next Page Icon (Ctrl + PgDn)**, **Select Page Icon** or **Previous Page Icon (Ctrl + PgUp)** to browse through all of the pages within an image file. (Note: Some image files may contain up to 80 pages.)
6. By double-clicking on an image from the file list, a slide show will initiate, however, it will not automatically advance through the pages. Use **Ctrl + PgDn** or **Ctrl + PgUp** to browse through all of the pages within an image file. Left-clicking on an image, while in the slide show mode, will advance to the first page of the next image file.
7. Right click on the image to see the image properties, as shown below. Image properties can also be used to view each page within the documents (Next Page), or to view the next document within the file list (Next Image).
8. If the image is difficult to view, the scale may be changed. Use **F5**, **F6**, **F7** and **F8** to alternate between scales that fit the screen, or are 50%, 100%, and 200% of the image's original size.

952.2(b)(1)

FOR COURT USE ONLY

ATTORNEY OR PARTY WITHOUT ATTORNEY NAME, MAILING ADDRESS, AND PHONE NUMBER
 ERIC D. PARIS, ESQ., S/B# 147836
 LAW OFFICES OF ERIC D. PARIS & ASSOCIATES
 281 S. THOMAS STREET
 SUITE 403
 POMONA, CALIFORNIA 91766
 TELEPHONE NO.: 909-469-5127 FAX NO. 909-469-5126

ATTORNEY FOR: PLAINTIFF'S

NAME AND ADDRESS OF COURT, COUNTY AND JUDICIAL DISTRICT OF FILE
 SUPERIOR COURT FOR THE STATE OF CALIFORNIA
 INDIO COURT

CASE NAME: CARDONA V. CHEVROLET

CIVIL CASE COVER SHEET

☐ Limited ☒ Unlimited

Complex Case Designation
☐ Counter ☐ Joinder
 Filed with first appearance by defendant
 (Cal. Rules of Court, rule 1611)

Case Number: _____

Assigned Judge: _____

Please complete all five (5) items below.

1. Check one box below for the case type that best describes this case:

☒ Auto Tort (22)
☐ Other PIP/DWD (Personal Injury/Property Damage/Wrongful Death) Tort
☐ Assault (24)
☐ Product liability (24)
☐ Medical malpractice (46)
☐ Other PIP/DWD (23)
☐ Non-PIP/DWD (Other) Tort
☐ Business tortious/bad business practice (27)
☐ Civil rights (e.g., discrimination, false arrest) (50)
☐ Defamation (e.g., slander, libel) (13)
☐ Fraud (16)
☐ Intellectual property (15)
☐ Professional negligence (e.g., legal malpractice) (25)
☐ Other non-PIP/DWD tort (20)
☐ Employment
☐ Wrongful termination (30)
☐ Other employment (15)
☐ Contract
☐ Breach of contract/warranty (26)
☐ Collisions (e.g., motor vehicle, space lease, accounts) (29)
☐ Insurance coverage (18)
☐ Other contract (37)
☐ Real Property
☐ Eminent domain/expropriation condemnation (14)
☐ Wrongful eviction (23)
☐ Other real property (e.g., quiet title) (26)
☐ Unintentional Defendant
☐ Commercial (31)
☐ Residential (32)
☐ Drugs (34)
☐ Judicial Review
☐ Asset forfeiture (20)
☐ Pattern re. saturation award (11)
☐ Will of mandate (22)
☐ Other judicial review (28)
☐ Previously Complex Civil Litigation (Cal. Rules of Court, rules 1800-1812)
☐ Arbitration/Trade regulation (33)
☐ Construction defect (10)
☐ Claims involving mass tort (40)

2. This case ☒ is ☐ is not complex under rule 1800 of the California Rules requiring exceptional judicial management.

a. ☒ Large number of separately represented parties. d. ☒ Large number of issues that will be time-consuming to resolve. e. ☐ Substantial amount of documentary evidence. f. ☐ Substantial post-trial issues.

3. Type of remedies sought (check all that apply):
 a. ☒ monetary b. ☐ nonmonetary, declaratory or injunctive relief c. ☐ other

4. Number of causes of action (specify): FIVE

5. This case ☐ is ☒ is not a class action suit.

Date: JULY 3, 2003

ERIC D. PARIS, ESQ., S/B# 147836
 (Print or type name)

NOTICE

Plaintiff must file this cover sheet with the first paper filed in the action or proceeding (see under the Probate, Family, or Welfare and Institutions Code) (Cal. Rules of Court, rule 1611).
 If this case is complex under rule 1800 of the California Rules of Court, you must also file a complex case cover sheet with the first paper filed in the action or proceeding.
 Unless this is a complex case, this cover sheet shall be used for statistical purposes only.

Form Approved for Mandatory Use
 Superior Courts of California
 952-2001 (Rev. January 1, 2006)

CIVIL CASE COVER SHEET

Step 7: Next File (Image)

Step 7: Next Page

Step 8: Scale Image

Step 7: Image Properties

DI12-047
114 368449280 – 739992
2006 CHEVROLET COBALT

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

2. Provide a copy of the Police Accident Report.

Response: See Attached Document.

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

Response: GM opts not to respond.

STATE OF NORTH CAROLINA
COUNTY OF BLADEN

IN THE GENERAL COURT OF JUSTICE
SUPERIOR COURT DIVISION

12 CVS 132

MARSHA JACOBS, Administratrix of the
Estate of MITCHELL LEE JACOBS; KRISTEN
L. MOORE, Individually, and H. CLIFTON
HESTER, as Guardian Ad Litem for AUSTIN
JACOBS a Minor,

Plaintiffs,

v.

GENERAL MOTORS, LLC; GENERAL
MOTORS COMPANY; LOVITTS AUTO
SALES, INC.; LOVITT HOLDING COMPANY,
LLC; LOVITT ENTERPRISES, INC.; JTEKT
NORTH AMERICA, INC.; JTEKT
AUTOMOTIVE VIRGINIA, INC.; and JTEKT
CORPORATION,

Defendants.

COMPLAINT
(Jury Trial Demanded)

COPY

BLADEN CO., N.C.
2012 MAR - 1 PM 4:54

FILED

NOW COME Plaintiffs, by and through counsel, complaining of Defendants, to allege
and say as follows:

**PARTIES, JURISDICTION,
CORPORATE VEIL PEIRCING AND VENUE**

1. Plaintiff Marsha Jacobs, Administratrix of the Estate of Mitchell Lee Jacobs, is a citizen and resident of Bladen County, North Carolina, and has been so for more than six (6) months prior to the institution of this action, and the decedent Mitchell Lee Jacobs was a citizen and resident of Bladen County, North Carolina, prior to his death.

2. Plaintiff Marsha Jacobs was appointed Administratrix of the Estate of Mitchell Lee Jacobs by the Clerk of Superior Court of Bladen County, North Carolina on July 19, 2010, in File No. 10 E 180, and has qualified and is now acting as Administratrix in the institution of this action, pursuant to Chapter 28A of the General Statutes of North Carolina, and this action is instituted within two (2) years of the death of Plaintiff Marsha Jacobs' intestate, and is brought pursuant to the Wrongful Death Statutes of North Carolina.

3. Plaintiff Kristin L. Moore is a citizen and resident of Columbus County, North Carolina, and has been so for more than six (6) months prior to the institution of this action. She is the mother of Plaintiff Austin Jacobs.

4. Plaintiff Austin Jacobs is a minor child born on July 8, 2008, is a citizen and resident of Columbus County, North Carolina, and has been so for more than six (6) months prior to the institution of this action. He is represented in this action by H. Clifton Hester, who

is a citizen and resident of New Hanover County, North Carolina, and has been duly appointed as his Guardian Ad Litem by the Clerk of Superior Court of Bladen County for the purpose of bringing this action.

5. Upon information and belief, Defendant General Motors, LLC is, and was at all times relevant to the facts set forth herein, a foreign limited liability company, incorporated under the laws of Delaware with its principal place of business in Detroit, Michigan. At all times relevant to the facts set forth herein, General Motors, LLC did business in the State of North Carolina with a registered agent and registered mailing address for service of process being CT CORPORATION SYSTEM, 150 Fayetteville Street, Box 1011, Raleigh, NC 27601.

6. Upon information and belief, at all times relevant to this Complaint, Defendant General Motors, LLC had continuing and systematic contacts with the State of North Carolina, introducing into the stream of global commerce vehicles and/or vehicle parts that were designed, manufactured, tested, inspected, marketed and/or sold by one or more of the other named Defendants in this action.

7. Upon information and belief, Defendant General Motors Company is and was at all times relevant to the facts set forth herein, a foreign corporation, incorporated under the laws of Delaware with its principal place of business in Detroit, Michigan. At all times relevant to the facts set forth herein, General Motors, LLC did business in the State of North Carolina with a registered agent and registered mailing address for service of process being the North Carolina Secretary of State, 2 South Salisbury Street, Raleigh, NC 27601.

8. Upon information and belief, at all times relevant to this Complaint, Defendant General Motors Company had continuing and systematic contacts with the State of North Carolina, introducing into the stream of global commerce vehicles and/or vehicle parts that were designed, manufactured, tested, inspected, marketed and/or sold by one or more of the other named Defendants in this action.

9. Defendants General Motors LLC and General Motors Company shall be referred to hereinafter collectively as the "GM Defendants."

10. The GM Defendants all knew or should have known at all relevant times that some of the vehicles described herein would be sold, used, and serviced in the State of North Carolina.

11. Upon information and belief, Defendant Lovitts Auto Sales, Inc. is a corporation organized and existing under the laws of the State of North Carolina, with a principal place of business in Wilmington, North Carolina, and with a registered agent and registered mailing address for service of process being Dale Lovitt, 1012 S. 3rd Street, Wilmington, NC 28401. The sole director, officer, secretary, treasurer, shareholder and registered agent of Defendant Lovitts Auto Sales, Inc. is Dale Lovitt.

12. Upon information and belief, at all times relevant hereto, Defendant Lovitts Auto Sales, Inc. was in the business of, among other things, marketing, selling, leasing and/or distributing motor vehicles, to consumers in North Carolina, either directly or through its sister, subsidiary, alter-ego or mere instrumentality entities.

13. Upon information and belief, at all times relevant hereto, Defendant Lovitts Auto Sales, Inc. held itself out to the public as marketing, selling, leasing and/or distributing motor

vehicles from two car lots in Wilmington, located at 1012 S. 3rd Street, Wilmington, NC 28401 and 1949 Carolina Beach Road, Wilmington, NC 28401.

14. Upon information and belief, Defendant Lovitt Holding Company, LLC is a corporation organized and existing under the laws of the State of North Carolina, with a principal place of business in Wilmington, North Carolina, and with a registered agent and registered mailing address for service of process being Kenneth Ray Lovitt, 1949 Carolina Beach Road, Wilmington, NC 28401. The sole member, manager, shareholder and registered agent of Defendant Lovitt Holding Company, LLC is Kenneth Ray Lovitt.

15. Upon information and belief, at all times relevant hereto, Lovitt Holding Company was in the business of, among other things, marketing, selling, leasing, storing and/or distributing motor vehicles, to consumers in North Carolina, either directly or through its subsidiary, alter-ego or mere instrumentality entities.

16. Upon information and belief, Defendant Lovitt Enterprises, Inc. is a corporation organized and existing under the laws of the State of North Carolina, with a principal place of business in Wilmington, North Carolina, and with a registered agent and registered mailing address for service of process being Cheryl Lovitt, 8715 Shipwatch Drive, Wilmington, NC 28412. The sole director, officer, secretary, treasurer, shareholder and registered agent of Defendant Lovitt Enterprise, Inc. is Cheryl Lovitt.

17. Upon information and belief, at all times relevant hereto, Defendant Lovitt Enterprises, Inc. was in the business of, among other things, marketing, selling, leasing and distributing motor vehicles, to consumers in North Carolina either directly or through its sister, subsidiary, alter-ego or mere instrumentality entities. As is evidenced by an Annual Report filed by this Defendant with the North Carolina Secretary of State on March 15, 2004, Lovitt Enterprises, Inc. described the nature of its business as "USED CAR SALES."

18. On August 12, 2005, the North Carolina Secretary of State issued a Certificate of Administrative Dissolution for Defendant Lovitt Enterprises, Inc. for total failure to file five, consecutive Annual Reports with the Secretary of State as is required by the corporate laws of North Carolina.

19. Upon information and belief, at all time relevant hereto, Dale Lovitt and Cheryl Lovitt were married to one another, and resided in the same household located at 8715 Shipwatch Drive, Wilmington, NC 28412 or other locations in the Wilmington and/or Carolina Beach, North Carolina areas.

20. Upon information and belief, at all times relevant hereto, Kenneth Ray Lovitt is related through blood and/or marriage to both Dale Lovitt and Cheryl Lovitt, and resided at 670 Saint Joseph Street, Carolina Beach, NC 28428 or other various locations in the Wilmington and/or Carolina Beach, North Carolina areas.

21. Upon information and belief, at all times relevant hereto, Dale Lovitt, Cheryl Lovitt and Kenneth Lovitt have at various times been the title owners of the real property on or adjacent to the two car lots referenced above from which Defendant Lovitts Auto Sales, Inc. held itself out to the public as marketing, selling, leasing and/or distributing motor vehicles, and these three individuals have executed multiple quitclaim and general warranty deeds amongst themselves conveying the same real property to one another for little to no consideration, as is evidenced by numerous deeds on file with the New Hanover County Registered of Deeds' office listing these individuals as grantors and grantees.

22. Upon information belief, beginning on or about November 29, 2011, Kenneth Ray Lovitt owned and operated a sole proprietorship in the business of, among other things, marketing, selling, leasing and distributing motor vehicles to consumers in North Carolina under the assumed name "Lovitt Auto Sales," said business located in Wilmington, North Carolina, as is evidenced by the Certificate of Assumed Name on file with the New Hanover County Register of Deeds office, Book No. 3122, Page No. 42-43.

23. Upon information and belief, at all times relevant hereto, Dale Lovitt, Cheryl Lovitt and Kenneth Ray Lovitt, as family members and the only respective officers, directors, managers, members, shareholders of Defendants Lovitts Auto Sales, Inc., Lovitt Enterprises, Inc. and Lovitt Holding Company, LLC, were engaged collectively and jointly in the business of, among other things, marketing, selling, leasing, storing and distributing motor vehicles, to consumers in North Carolina behind and through their various corporate shell entities, and each disregarded the necessary corporate formalities of their respective entities.

24. Upon information and belief, at all times relevant hereto, Defendant Lovitt Holding Company, LLC commingled its real and personal property, assets and trade names with those of Defendants Lovitts Auto Sales, Inc. and/or Lovitt Enterprises, Inc. in a manner so as to cause these entities to have no separate mind or will of their own, and to confuse the public and cause a reasonable person to believe that all three entities were alter-egos of one another.

25. Upon information and belief, at all times relevant hereto, Defendant Lovitt Holding Company, LLC was the parent company, holding company, and/or alter ego of Defendants Lovitts Auto Sales, Inc. and/or Lovitt Enterprises, Inc. Defendant Lovitt Holding Company LLC, upon information belief, owned, operated, and exercised complete domination and control over the finances, policy and business practices of Defendants Lovitts Auto Sales, Inc. and/or Lovitt Enterprises, Inc., such that these Defendants were mere instrumentalities of Defendant Lovitt Holding Company, LLC.

26. Upon information and belief, Defendant Lovitt Holding Company, LLC used the above-referenced control and domination to breach certain statutory or other positive legal duties, and/or to commit certain wrongs to the Plaintiffs, all of which are more fully described herein below.

27. Upon information and belief, the above-mentioned control and breaches by Defendant Lovitt Holding Company, LLC proximately caused injury and unjust loss to Plaintiffs, all of which are more fully described herein below.

28. In the alternative, upon information and belief, at all times relevant hereto, Defendant Lovitt Enterprises, Inc. commingled its real and personal property, assets and trade names with those of Defendants Lovitts Auto Sales, Inc. and/or Lovitt Holding Company, LLC in a manner so as to cause these entities to have no separate mind or will of their own, and to confuse the public and cause a reasonable person to believe that all three entities were alter-egos of one another.

29. Upon information and belief, at all times relevant hereto, Defendant Lovitt Enterprises, Inc. was the parent company, holding company, and/or alter ego of Defendants Lovitts Auto Sales, Inc. and/or Lovitt Holding Company, LLC. Defendant Lovitt Enterprises, Inc., upon information belief, owned, operated, and exercised complete domination and control over the finances, policy and business practices of Defendants Lovitts Auto Sales, Inc. and/or Lovitt Holding Company, LLC, such that these Defendants were mere instrumentalities of Defendant Lovitt Enterprises, Inc.

30. Upon information and belief, Defendant Lovitt Enterprises, Inc. used the above-referenced control and domination to breach certain statutory or other positive legal duties, and/or to commit certain wrongs to the Plaintiffs, all of which are more fully described herein below.

31. Upon information and belief, the above-mentioned control and breaches by Defendant Lovitt Enterprises, Inc. proximately caused injury and unjust loss to Plaintiffs, all of which are more fully described herein below.

32. Defendants Lovitts Auto Sales, Inc., Lovitt Holding Company, LLC and Lovitt Enterprises, Inc. shall be referred to hereinafter collectively as the "Lovitt Defendants."

33. Upon information and belief, Defendant JTEKT North America, Inc. is and was at all times relevant to the facts set forth herein, a foreign corporation, incorporated under the laws of Delaware with its principal place of business in Plymouth, Michigan, with a registered agent and registered mailing address for service of process being The Prentice-Hall Corporation System, Inc., 2711 Centerville Road, Suite 400, Wilmington, DE 19808. Upon information and belief, this Defendant was at all relevant times a North American subsidiary of Defendant JTEKT Corporation.

34. Upon information and belief, at all times relevant to this Complaint, Defendant JTEKT North America, Inc. had continuing and systematic contacts with the State of North Carolina, introducing into the stream of global commerce vehicle parts that were designed, manufactured, tested, inspected, marketed and/or sold by one or more of the other named Defendants in this action, specifically including the electric power steering assist components Plaintiffs alleged directly and proximately caused their injuries, as is more fully described herein below.

35. Upon information and belief, Defendant JTEKT Automotive Virginia, Inc. is and was at all times relevant to the facts set forth herein, a foreign corporation, incorporated under the laws of Delaware with its principal place of business in Plymouth, Michigan, with a registered agent and registered mailing address for service of process being The Corporation Trust Company, Corporation Trust Center, 1209 Orange Street, Wilmington, DE 19801. Upon information and belief, this Defendant was at all relevant times a North American subsidiary of Defendant JTEKT Corporation.

36. Upon information and belief, at all times relevant to this Complaint, Defendant JTEKT Automotive Virginia, Inc. had continuing and systematic contacts with the State of North Carolina, introducing into the stream of global commerce vehicle parts that were designed, manufactured, tested, inspected, marketed and/or sold by one or more of the other named Defendants in this action, specifically including the electric power steering assist components Plaintiffs alleged directly and proximately caused their injuries, as is more fully described herein below.

37. Upon information and belief, Defendant JTEKT Corporation is and was at all times relevant to the facts set forth herein, a foreign corporation, incorporated under the laws of Japan with its principal place of business in Nakamura-ku, Nagoya 450-8515 Japan. This Defendant is not currently registered with the Secretary of State's Office in North Carolina and thus no registered agent is appointed for service of process within this state. Pursuant to Rule 4 of the North Carolina Rules of Civil Procedure, Defendant JTEKT Corporation may be served with process by forwarding a copy of the summons and complaint, via certified mail, to

Motohiko Yokoyama, Chairman of the Board of Directors, at 15th Floor, Midland Square, 4-7-1 Meieki, Nakamura-ku, Nagoya 450-8515 Japan.

38. Upon information and belief, at all times relevant to this Complaint, Defendant JTEKT Corporation had continuing and systematic contacts with the State of North Carolina, introducing into the stream of global commerce vehicle parts that were designed, manufactured, tested, inspected, marketed and/or sold by one or more of the other named Defendants in this action, specifically including the electric power steering assist components Plaintiffs alleged directly and proximately caused their injuries, as is more fully described herein below.

39. Pursuant to the Hague Convention on the Service Abroad of Judicial and Extra Judicial Documents in Civil and Commercial Matters, 20 U.S.T. 361, the Ministry of Foreign Affairs, 2-2-1 Kasumigaseki Chiyoda-ku, Tokyo, 100-8919 Japan, the central authority for Japan, may receive a copy of the summons and original complaint filed in this matter and forward it to Defendant JTEKT Corporation by and through Motohiko Yokoyama, Chairman of the Board of Directors, at 15th Floor, Midland Square, 4-7-1 Meieki, Nakamura-ku, Nagoya 450-8515 Japan, by registered mail.

40. Defendants JTEKT North America, Inc., JTEKT Automotive Virginia, Inc. and JTEKT Corporation shall be referred to hereinafter collectively as the "JTEKT Defendants."

41. The JTEKT Defendants all knew or should have known at all relevant times that the electric power steering assist vehicle components described more fully herein below would be sold, used, and serviced in the State of North Carolina.

42. The Plaintiffs are each a claimant as that term is defined in N.C.G.S. 99B-1.

43. The GM Defendants and JTEKT Defendants are each a manufacturer as that term is defined in N.C.G.S. 99B-1.

44. The GM Defendants and the Lovitt Defendants are each a seller as that term is defined in N.C.G.S. 99B-1.

45. This is a products liability and breach of warranties action brought pursuant to N.C.G.S. 25-2-314, 25-2-315 and 99B-1 et seq.

46. This action has been commenced within the required twelve years from the date of the initial purchase for use or consumption as required by N.C.G.S. 1-46.1.

47. This court has jurisdiction and venue is proper.

FACTS COMMON TO ALL CLAIMS

48. On or about January 22, 2010, decedent Mitchell Lee Jacobs (hereinafter referred to as the "Decedent"), purchased a 2006 Chevrolet Cobalt, VIN No. 1G1AK55F767744966 (hereinafter referred to as the Subject Vehicle), from the Lovitt Defendants and/or Defendant Lovitt Auto Sales, Inc. in Wilmington, North Carolina.

49. Upon information and belief, the GM Defendants originally developed, designed, tested, manufactured, marketed, promoted and sold the Subject Vehicle for sale to consumers.

The Subject Vehicle came equipped from the GM Defendants with an electric power steering assist system.

50. Upon information and belief, the JTEKT Defendants developed, designed, tested, manufactured, marketed, sold and supplied the electric power steering assist system and its components to the GM Defendants for use and sale in the Subject Vehicle.

51. Upon information and belief no damage, service or repairs on the Subject Vehicle prior to Decedent's purchase on January 22, 2010 would have essentially changed the condition of the Subject Vehicle, or the electric power steering assist system in the Subject Vehicle.

52. Decedent thoroughly inspected the Subject Vehicle prior to purchase, and found it to be in good working order.

53. Upon purchase of the vehicle, Decedent began using it in the manner in which it was intended to be used, without any problems or indications that it was in disrepair.

54. Decedent took good care of the Subject Vehicle for the duration of his ownership.

55. On or about the 21st day of February, 2010, the Decedent, Plaintiff Moore, and Minor Plaintiff Austin Jacobs (hereinafter referred to as "Minor Plaintiff"), were leaving a luncheon held at their church, headed to Plaintiff Moore's home. At approximately 2:28 p.m., the Decedent was operating the vehicle, which was displaying N.C. Plate No. ZPK-5933, and was traveling west on RP 1740 near Bolton, in Columbus County, North Carolina.

56. At approximately the same time and place described above, the power steering on the vehicle suddenly and without warning malfunctioned, causing the vehicle to run off the road and strike a large tree, directly and proximately causing property damage to the vehicle, severe personal injuries to Plaintiffs Moore and Austin, and severe personal injuries and ultimate death to the Decedent.

57. Decedent and Plaintiffs' use of the Subject Vehicle was proper and foreseeable.

58. It was the duty of Defendants, by and through their agents, servants, or employees, to exercise reasonable care in the design, testing, manufacturing, assembly, distribution and/or sale of the Subject Vehicle and its various component parts, including the electric power steering assist system, so it would be reasonably safe when used in a foreseeable manner. This included a duty to eliminate known dangers associated with the foreseeable use of the Subject Vehicle, and to warn of known dangers.

59. The injuries, losses, and harms complained of herein occurred because the Subject Vehicle was not reasonably roadworthy, due to the danger of sudden loss of electric power steering assist, under normal and/or foreseeable operating conditions like those set forth in this Complaint.

60. Upon information and belief, the Defendants breached their duty of reasonable care in the design, testing, manufacturing, assembly, distribution and/or sale of the Subject Vehicle and its various component parts, including the electric power steering assist system, by failing to eliminate, and failing to adequately warn of, the known danger of sudden loss of electric power steering assist associated with the foreseeable use of the Subject Vehicle.

61. Upon information and belief, Defendants also breached their duty of reasonable care in the design, testing, manufacturing, assembly, distribution and/or sale of the Subject Vehicle and its various component parts by failing to provide timely post sale warnings of the potential for sudden loss of electric power steering assist to its customers and users of its vehicles once they learned, or should have learned, of the defect in the electric power steering motor of its Chevrolet Cobalt model year 2005-2010 vehicles and the lack of consumer and user knowledge of this danger.

62. Upon information and belief, Defendants had unique and specific knowledge of the defective condition of the electric power steering motors installed in the Chevrolet Cobalt and Pontiac G5 model year 2005-2010 vehicles it designed, manufactured, distributed, and sold and the likelihood of great harm to the users of these vehicles if Defendants did not recall such vehicles posing risks associated with sudden loss of electric power steering assist, and/or provide adequate warnings of the sudden loss of electric power steering associated with the foreseeable uses of such vehicles.

63. The Subject Vehicle was therefore unreasonably dangerous and unsafe.

64. Upon information and belief, each and every Defendant in this action had actual and/or constructive notice of the unreasonably dangerous and unsafe propensities of the subject vehicle described herein. These allegations are based at least on the following particulars:

GM Defendants' Knowledge of the Steering Defect:

a. The GM Defendants had been aware for a substantial period of time preceding the subject incident that the electric power steering units on Chevrolet Cobalt and Pontiac G5 vehicles manufactured since 2005 could fail, resulting in a sudden loss of power steering that could occur at any time while driving.

b. In fact, unbeknownst to Decedent, Plaintiffs or the public, the GM Defendants had initiated an investigation into the failure of its electric power steering system on January 27, 2009, more than one year prior to the subject accident, according to disclosures made by Defendant to the National Highway Traffic Safety Administration ("NHTSA"), on March 1, 2010.

c. On June 9, 2009, the GM Defendants changed the status of the investigation from "active" to "monitor" "due to a low rate of warranty claims in relation to similar issues and the *lack of an identified root cause.*" (Emphasis added.)

d. According to Gay P. Kent, Director of Product Investigations and Safety Regulations for General Motors, "the root cause was identified as the electric power Steering (EPS) motor in July (2009)."

e. Notwithstanding that the GM Defendants had positively identified the root cause for the sudden loss of power steering assist as fault in the electric power steering motor, the GM Defendants failed to notify the owners of the vehicles equipped with the faulty electric power steering motor of the potential for sudden loss of power steering.

f. Similarly, the GM Defendants failed to notify NHTSA of the existence of a safety defect or its root cause.

g. Moreover, despite having identified the root cause for sudden loss of power steering, the GM Defendants did not change the status of its internal investigation into the sudden loss of power steering back to "active" until October 2009.

h. In this same time frame, the GM Defendants finally took steps to correct the problem by directing the supplier of the electric power steering motor to develop and produce a revised motor. However, even while these steps were being taken, the GM Defendants failed to inform NHTSA, the owners of the affected vehicles, or the general public of the danger of sudden loss of power steering in the affected vehicles.

i. In December 2009, production of the new electric power steering motor began, yet the GM Defendants continued to remain silent as to the existence of the defect, the potential for sudden loss of power steering, and the availability of a remedy for the defect.

Investigation by NHTSA:

j. On January 27, 2010, as a result of the quantity of complaints received by NHTSA regarding the sudden loss of electric power steering in Chevrolet Cobalt and Pontiac G5 vehicles, NHTSA's Office of Defects Investigation ("ODI") independently launched a Preliminary Evaluation to assess the frequency, scope, and safety consequences of the alleged defect. Of course, NHTSA was not aware that the GM Defendants had themselves confirmed the existence of a defect in the electric power steering motor six months previously.

k. As of that date, NHTSA had received 1,132 complaints alleging sudden loss of electric power steering in Chevrolet Cobalt vehicles manufactured between 2005 and 2009. Of those complaints, approximately 10 percent alleged that the loss of steering assist resulted in difficulty controlling the vehicle, such as departing from the desired lane of travel. Eleven of the complaints alleged that the sudden increase in steering effort caused by the alleged defect resulted in a crash.

l. On February 16, 2010, the ODI specifically requested that the GM Defendants provide, among other things, the number of consumer complaints where a failure or malfunction of the electric power steering was claimed.

m. Only in response to a request for information from the ODI, did the GM Defendants first acknowledge, on April 14, 2010, that they were aware of 1,668 incidents in which loss of power steering assist during vehicle operation was alleged in Chevrolet Cobalt model year 2005-2009 vehicles. The GM Defendants also acknowledged that they were aware of an additional 2,759 instances in which loss of power steering assist during vehicle operation was alleged in peer vehicles (Saturn ION, Chevrolet Malibu, and Pontiac G6 model year 2005-2009 vehicles equipped with electric power steering).

n. The GM Defendants also revealed that they were aware of 81 crashes involving Chevrolet Cobalt vehicles and 89 crashes involving peer vehicles where it was claimed that the crash may have been related to the loss of electric power steering. Significantly, however, the GM Defendants only included crashes in which the vehicle was believed to be traveling less than 30 mph at the time of the loss of power steering. The GM Defendants did not disclose how many crashes they were aware of where it was

claimed that the crash was related to the sudden loss of power steering, but the vehicle was traveling 30 mph or greater.

o. The ODI's own analysis of crash claims made to NHTSA revealed 36 crashes in which the claim of loss of power steering was supported by verifiable factors such as a warning chime or malfunction indicator lamp illuminating at the time of the accident or an electric power steering malfunction identified after the crash occurred.

The Subsequent Recall:

p. Finally, on March 1, 2010, one month after NHTSA had launched its own Preliminary Evaluation, and approximately a week after the incident involving the Subject Vehicle, the GM Defendants informed NHTSA that they were issuing a safety recall of the affected vehicles, including the Subject Vehicle, to replace the electric power steering motor in order to correct a defect that could result in a sudden loss of power steering assist at any time while driving, thus increasing the risk of a crash.

65. Upon information and belief, the JTEKT Defendants either were aware or should have been aware of the above-described power steering defects, multiple crash reports, internal investigations by the GM Defendants, and the investigation by NHTSA, given their close and continuing business relationship with the GM Defendants as the manufacturer, designer and/or supplier of the electric power steering assist system.

66. Upon information and belief, the Lovitt Defendants either were aware or should have been aware of the above-described power steering defects, multiple crash reports, internal investigations by the GM Defendants, and the investigation by NHTSA, given their close and continuing business relationship with the GM Defendants as a seller, distributor and/or retailer of General Motors vehicles, including the Chevrolet Cobalt and Pontiac G5 models.

67. Upon information and belief, all Defendants had or should have had unique and specific knowledge of the defective condition of the electric power steering motors installed in the Chevrolet Cobalt and Pontiac G5 model year 2005-2010 vehicles it designed, manufactured, distributed, and/or sold and the likelihood of great harm to the users of these vehicles if they were not recalled due to the risks associated with sudden loss of electric power steering assist, and/or if the Defendants did not provide adequate warnings to consumers, owners and current users of the affected vehicles of the sudden loss of electric power steering associated with the foreseeable uses of such vehicles.

68. Upon information and belief, despite the GM Defendants' actual and specific knowledge of the danger of sudden loss of electric power steering assist resulting from the defect in the electric power steering motors installed in its Chevrolet Cobalt vehicles from 2005 through 2010, and its actual and specific knowledge of consumer lack of awareness of this danger, the GM Defendants made a determination not to recall or warn the hundreds of thousands of Chevrolet Cobalt owners and users already in possession or use of its vehicles of the dangers of sudden loss of electric power steering assist, until after NHTSA opened its own Preliminary Evaluation regarding such danger. Upon information and belief, the GM Defendants made this decision despite knowing it would likely result in additional crashes and injuries of users of vehicles and other members of the general public.

69. No Defendant gave the Decedent or Plaintiffs any notice, warning, or instruction on the unreasonable dangerousness or inherent unsafe propensities of the Subject Vehicle.

70. Upon information and belief, Defendants were careless and negligent in the developing, designing, manufacturing, testing, selling, distribution, merchandising, advertising, promotion, compounding, packaging, fabrication, warning, analyzing, marketing, and/or recommendation of the Subject Vehicle, and such carelessness and negligence was the direct and proximate cause of the Plaintiffs' injuries and damages, and the injuries and death of the Decedent.

FIRST CLAIM FOR RELIEF
BREACH OF IMPLIED WARRANTIES

71. Plaintiffs reallege and incorporate by reference, as if fully set forth herein, all the allegations contained in the preceding paragraphs of this Complaint.

72. Defendants sale of an unreasonably dangerous and unsafe automobile and/or electric power steering assist system built for normal consumer use is a breach of the implied warranty of merchantability as set forth in N.C.G.S. 25-2-314, and is further a breach of the implied warranty of fitness for a particular purpose as set forth in N.C.G.S. 25-2-315.

73. Defendants breach of the implied warranty of merchantability and the implied warranty of fitness for a particular purpose, described herein and pursuant to N.C.G.S. 25-2-314 and 25-2-315, were the proximate causes of severe physical injury, death and other harms and losses suffered by Decedent and Plaintiffs, thereby making each and every Defendant jointly and severally responsible for and liable to Plaintiffs for all harms, losses, injuries, and other such compensatory damages so caused in an amount exceeding TEN THOUSAND DOLLARS (\$10,000.00).

74. Further, each and every Defendant impliedly warranted and represented that the Subject Vehicle was of merchantable quality and was reasonably fit for the purposes for which it was sold to Plaintiffs.

75. The Decedent and Plaintiffs reasonably relied upon each and every said implied warranty.

76. As an unreasonably dangerous product with inherently unsafe propensities, the Subject Vehicle was not of merchantable quality, but was instead sold to Decedent with an unreasonably dangerous defect making it susceptible to sudden loss of power steering when operated under normal and/or foreseeable conditions.

77. Each and every Defendant further failed to give specific instruction, warning, or other caution to Plaintiffs and Decedent in order to notify them of the defect and its danger.

78. The defective condition and lack of warning constitutes a further breach of each and every implied warranty made by each and every Defendant.

79. Prior to the filing of this action, the Plaintiffs notified every Defendant of the claims for breach of implied warranties, including the implied warranty of merchantability. Furthermore, the facts as set forth in this Complaint give each and every Defendant seasonable notice of the manufacturing defect of the subject vehicle and the breach of their implied warranties.

80. The breach of the implied warranty of merchantability by Defendants, described herein and pursuant to N.C.G.S. 25-2-314, was the proximate cause of severe physical injury, and other harms and losses suffered by Decedent and Plaintiffs, thereby making each and every Defendant jointly and severally responsible for and liable to Plaintiffs for all harms, losses, injuries, and other such compensatory damages so caused in an amount exceeding TEN THOUSAND DOLLARS (\$10,000.00).

81. Further, Defendants had reason to know of Decedent's particular purpose for which he was seeking to purchase an automobile like the subject vehicle and Decedent reasonably relied on Defendants to select a suitable automobile and/or power steering system consistent with said purpose.

82. Defendants and/or their agents acting within the scope of their employ selected the Subject Vehicle despite its unreasonable dangerousness and sold it to Decedent, and in so doing breached the implied warranty of fitness for a particular purpose as set forth in N.C.G.S. 25-2-315.

83. The breach of the implied warranty of fitness for a particular purpose by Defendants, described herein and pursuant to N.C.G.S. 25-2-315, was the proximate cause of severe physical injury, and other harms and losses suffered by Decedent and Plaintiffs, thereby making Defendants responsible for and liable to Plaintiffs for all harms, losses, injuries, and other such compensatory damages so caused in an amount exceeding TEN THOUSAND DOLLARS (\$10,000.00), plus prejudgment interest at the legal rate.

SECOND CLAIM FOR RELIEF
NEGLIGENT DESIGN, MANUFACTURE, TESTING,
PROMOTION, DISTRIBUTION & FAILURE TO WARN
AGAINST THE GM DEFENDANTS AND THE JTEKT DEFENDANTS

84. Plaintiffs reallege and incorporate by reference, as if fully set forth herein, all the allegations contained in the preceding paragraphs of this Complaint.

85. The GM and JTEKT Defendants owed a duty to Plaintiffs to design, manufacture, test and distribute the Subject Vehicle and/or the electric power steering system in a reasonable and prudent manner so as to avoid unreasonable risk of injury to Plaintiff and others.

86. The GM and JTEKT Defendants further owed a duty to Plaintiffs upon notice of inherent or unreasonably dangerous propensities of the Subject Vehicle and/or electric power steering system to warn of same.

87. The GM and JTEKT Defendants owed a duty to exercise reasonable, ordinary, and due care in the designing, researching, testing, manufacturing, marketing, supplying, promoting, packaging, sale and/or distribution of the Subject Vehicle and/or the electric power steering system into the stream of commerce, including a duty to assure that the product was not unreasonably dangerous.

88. The GM and JTEKT Defendants failed to exercise reasonable, ordinary, and due care in the designing, researching, testing, manufacturing, marketing, supplying, promoting, packaging, sale, testing, quality assurance, quality control, and/or distribution of the Subject

Vehicle and/or the electric power steering assist system into the stream of commerce, in that these Defendants knew or should have known that using the vehicle was unreasonably dangerous and created a high risk of injury or death.

89. The GM and JTEKT Defendants negligently breached the aforementioned duties by:

a. Designing, manufacturing, testing, promoting and choosing to deliver a passenger automobile for sale that, despite proper maintenance and a well cared for condition, could cause a sudden loss of power steering when put to normal and/or foreseeable use;

b. Designing, manufacturing, testing, promoting and choosing to deliver a passenger automobile for sale that had multiple flaws in the electric power steering assist system that were likely to cause a sudden loss of power steering in the vehicle under foreseeable and/or normal use;

c. Choosing to avoid a recall, retrofit, or other post-sale warning after the GM and JTEKT Defendants knew, or should have known, that the electric power steering system in the Subject Vehicle were defective and unreasonably dangerous;

d. Choosing to avoid warning Plaintiffs and similarly situated consumers of the inherent danger and unreasonably dangerous propensities of the Subject Vehicle and vehicles like it, including, specifically, failing to warn of the likelihood of sudden loss of power steering in the vehicle under foreseeable and/or normal use;

e. Choosing to avoid adequate and sufficient testing and inspection of the Subject Vehicle, the electric power steering assist system, and other similar vehicles and components;

f. Designing, manufacturing, testing, promoting and choosing to deliver a passenger automobile that did not conform to the standards of applicable governmental agencies, which were in effect at the time the vehicle left the control of the Defendants.

g. Designing, manufacturing, testing, promoting and choosing to deliver a passenger automobile for sale that had multiple flaws in the electric power steering assist system that were likely to cause a sudden loss of power steering in the vehicle under foreseeable and/or normal use when there existed a technical, economic, and practically feasible alternative design or formulation at the time of manufacture of the vehicle.

h. The GM and JTEKT Defendants were negligent in their design, manufacture, promotion and delivery of the subject vehicle in other ways to be proven through discovery and at trial.

90. At the time the Subject Vehicle and/or the electric power steering assist system left the control of the GM and JTEKT Defendants, these Defendants unreasonably failed to adopt a practical, feasible, and otherwise reasonable alternative design or formulation that was safer, that could have been reasonably adopted and that would have prevented or substantially reduced the risk of harm without substantially impairing the usefulness, practicality or desirability of the vehicle.

91. The design and formulation of the Subject Vehicle and/or the electric power steering assist system was so unreasonable that a reasonable person, aware of the relevant facts, would not use a vehicle of this design.

92. The GM and JTEKT Defendants' unreasonable acts in designing and formulating the vehicle were the direct and proximate cause of the Plaintiffs' injuries and damages, and the injuries and death of the Decedent.

93. The GM and JTEKT Defendants did not act reasonably and prudent, but instead acted unreasonably, in failing to provide an adequate warning or instruction regarding the Subject Vehicle and/or the electric power steering assist system.

94. At the time the Subject Vehicle and/or the electric power steering assist system left the control of the GM and JTEKT Defendants, the vehicle, without adequate warning or instruction, created a unreasonably dangerous condition that these Defendants knew or, in the exercise of ordinary care should have known, posed a substantial risk of harm to a user or consumer who was reasonably foreseeable.

95. After the vehicle left the control of the GM and JTEKT Defendants, these Defendants became aware of or, in the exercise of ordinary care should have known, that the Subject Vehicle and/or the electric power steering assist system posed a substantial risk of harm to a user or consumer who was reasonably foreseeable and failed to take reasonable steps to give adequate warning or instruction or to take other reasonable action under the circumstances.

96. The GM and JTEKT Defendants' failure to provide an adequate warning or instruction was the direct and proximate cause of the Plaintiffs' injuries and damages, and the injuries and death of the Decedent.

97. Despite the fact that the GM and JTEKT Defendants knew or should have known that the vehicles were defective and unsafe, these Defendants continued to market, manufacture, distribute and/or sell Chevrolet Cobalts and/or electric power steering assist systems to consumers, including the Decedent.

98. As a result of the negligence of the GM and JTEKT Defendants, Plaintiffs **Moore** and Minor Plaintiff suffered severe, painful, and permanent injuries, causing great pain and suffering, for which they have undergone medical treatment and care, and have incurred medical expenses, and will incur future medical expenses and lost wages, all to their loss and damage in an amount in excess of TEN THOUSAND (\$10,000.00) DOLLARS, plus interest, each.

99. As a result of the negligence of the GM and JTEKT Defendants, the Decedent suffered severe injuries, great pain and suffering, and death, all to Plaintiff's loss and damage in an amount in excess of TEN THOUSAND (\$10,000.00) DOLLARS, plus interest.

100. As a result of the negligence of the GM and JTEKT Defendants, the Plaintiffs and Decedent suffered damages to their personal property, including but not limited to damages to the Subject Vehicle and its contents. Said damages include but are not limited to property damage, loss of use of the vehicle, diminution of value, and rental costs, and being in an amount in excess of FIVE THOUSAND (\$5,000.00) DOLLARS, plus interest.

THIRD CLAIM FOR RELIEF
NEGLIGENT TESTING, PROMOTION,
INSPECTION, SALE & FAILURE TO WARN
AGAINST THE LOVITT DEFENDANTS

101. Plaintiffs reallege and incorporate by reference, as if fully set forth herein, all the allegations contained in the preceding paragraphs of this Complaint.

102. The Lovitt Defendants owed a duty to Plaintiffs and Decedent to test, promote, inspect and sale the Subject Vehicle and/or the electric power steering system in a reasonable and prudent manner so as to avoid unreasonable risk of injury to Plaintiff and others.

103. The Lovitt further owed a duty to Plaintiffs and Decedent upon notice of inherent or unreasonably dangerous propensities of the Subject Vehicle and/or electric power steering system to warn of same.

104. The Lovitt Defendants owed a duty to exercise reasonable, ordinary, and due care in the testing, marketing, inspecting, supplying, promoting, packaging, sale and/or distribution of the Subject Vehicle and/or the electric power steering system into the stream of commerce, including a duty to assure that the product was not unreasonably dangerous.

105. The Lovitt Defendants failed to exercise reasonable, ordinary, and due care in the testing, marketing, inspecting, supplying, promoting, packaging, sale, quality assurance, quality control, and/or distribution of the Subject Vehicle and/or the electric power steering assist system into the stream of commerce, in that these Defendants knew or should have known that using the vehicle was unreasonably dangerous and created a high risk of injury or death.

106. The Lovitt Defendants negligently breached the aforementioned duties by:

a. Marketing, promoting, selling, and choosing to deliver a passenger automobile for sale that, despite proper maintenance and a well cared for condition, could cause a sudden loss of power steering when put to normal and/or foreseeable use;

b. Marketing, promoting, selling and choosing to deliver a passenger automobile for sale that had multiple flaws in the electric power steering assist system that were likely to cause a sudden loss of power steering in the vehicle under foreseeable and/or normal use;

c. Failing to provide adequate post-sale warnings after the Lovitt Defendants knew, or should have known, that the electric power steering system in the Subject Vehicle were defective and unreasonably dangerous;

d. Failing to provide an adequate warning to Decedent and Plaintiffs and similarly situated consumers of the inherent danger and unreasonably dangerous propensities of the Subject Vehicle and vehicles like it, including, specifically, failing to warn of the likelihood of sudden loss of power steering in the vehicle under foreseeable and/or normal use;

e. Failing to provide adequate and sufficient testing and inspection of the Subject Vehicle, the electric power steering assist system, and other similar vehicles and components;

f. The Lovitt Defendants were negligent in their marketing, promoting, selling and delivery of the Subject Vehicle in other ways to be proven through discovery and at trial.

107. The Lovitt Defendants did not act reasonably and prudent, but instead acted unreasonably, in failing to provide an adequate warning or instruction regarding the Subject Vehicle and/or the electric power steering assist system.

108. At the time the Subject Vehicle and/or the electric power steering assist system left the control of the Lovitt Defendants, the vehicle, without adequate warning or instruction, created an unreasonably dangerous condition that these Defendants knew or, in the exercise of ordinary care should have known, posed a substantial risk of harm to a user or consumer who was reasonably foreseeable.

109. After the vehicle left the control of the Lovitt Defendants, these Defendants became aware of or, in the exercise of ordinary care should have known, that the Subject Vehicle and/or the electric power steering assist system posed a substantial risk of harm to a user or consumer who was reasonably foreseeable and failed to take reasonable steps to give adequate warning or instruction or to take other reasonable action under the circumstances.

110. The Lovitt Defendants' failure to provide adequate testing, promotion, inspection, sale, warning or instruction was the direct and proximate cause of the Plaintiffs' injuries and damages, and the injuries and death of the Decedent.

111. Despite the fact that the Lovitt Defendants knew or should have known that the vehicles were defective and unsafe, these Defendants continued to market, manufacture, distribute and/or sell Chevrolet Cobalts and/or electric power steering assist systems to consumers, including the Decedent.

112. As a result of the negligence of the Lovitt Defendants, Plaintiffs **Moore** and Minor Plaintiff suffered severe, painful, and permanent injuries, causing great pain and suffering, for which they have undergone medical treatment and care, and have incurred medical expenses, and will incur future medical expenses and lost wages, all to their loss and damage in an amount in excess of TEN THOUSAND (\$10,000.00) DOLLARS, plus interest, each.

113. As a result of the negligence of the Lovitt Defendants, the Decedent suffered severe injuries, great pain and suffering, and death, all to Plaintiff's loss and damage in an amount in excess of TEN THOUSAND (\$10,000.00) DOLLARS, plus interest.

114. As a result of the negligence of the Lovitt Defendants, the Plaintiffs and Decedent suffered damages to their personal property, including but not limited to damages to the Subject Vehicle and its contents. Said damages include but are not limited to property damage, loss of use of the vehicle, diminution of value, and rental costs, and being in an amount in excess of FIVE THOUSAND (\$5,000.00) DOLLARS, plus interest.

FOURTH CLAIM FOR RELIEF **WRONGFUL DEATH**

115. Plaintiffs reallege and incorporate herein by reference the above paragraphs of this complaint.

116. The acts and omissions of the Defendants, as previously set forth herein, directly and proximately caused the wrongful death of the Decedent, Mitchell Lee Jacobs.

117. As the direct and proximate result of Defendants' negligence, the Decedent sustained severe, painful, and fatal injuries to and about his body, for which he underwent medical treatment and care and incurred medical expenses and funeral and burial expenses; he suffered and continued to suffer until his death great physical pain and mental suffering of body and mind. At the time of his death, he was of excellent health, constitution, vigor, and habits.

118. As a direct and proximate result of the aforesaid acts of negligence on the part of the Defendants, the next of kin of Mitchell Lee Jacobs have lost the net income he would have earned during the remainder of his life, the services, protection, care, and assistance of Mitchell Lee Jacobs, and the society, companionship, comfort, guidance, kindly offices, and advice of Mitchell Lee Jacobs, all in an amount in excess of TEN THOUSAND (\$10,000.00) DOLLARS, plus interest.

119. Had Mr. Jacobs lived, he would have been entitled to bring this action against the Defendants.

120. Pursuant to N.C.G.S. § 28A-18-2(b), Mr. Jacobs' heirs are entitled to recover all damages directly and proximately caused by the negligent acts of Defendants for Mr. Jacobs' death by the Defendants' wrongful acts, including the following:

- a. Expenses for medical care and treatment incident to Decedent's injuries sustained in the accident;
- b. Compensation for the pain and suffering of Decedent;
- c. Reasonable funeral and burial expenses of the Decedent;
- d. The present value of the Decedent to the persons entitled to receive damages for their loss of the reasonably expected net income of the Decedent; services, protection, care and assistance of the decedent; the society, comfort, companionship, guidance, kindly offices and advice of the decedent; and;
- e. For such other damages as allowed by law.

FIFTH CLAIM FOR RELIEF
Punitive Damages
(All Defendants)

121. Plaintiffs reallege each and every preceding paragraph of this Complaint and incorporate each by reference as if fully set forth herein.

122. The aforementioned actions of the Defendants were intentional and/or reckless, willful, wanton, and malicious. Consequently, Plaintiffs, seeks punitive damages in an amount in excess of TEN THOUSAND (\$10,000.00) DOLLARS, plus interest.

SIXTH CLAIM FOR RELIEF
Concurring and Combined Negligence, and Joint and Several Liability
(All Defendants)

123. Plaintiffs reallege each and every preceding paragraph of this Complaint and incorporate each by reference as if fully set forth herein.

124. The negligence of each Defendant, set forth elsewhere herein in more detail, was a direct, proximate, and independent cause of Plaintiffs' injuries and damage.

125. Additionally, the separate and independent acts or omissions of each Defendant concurred and combined to produce Plaintiffs' injuries and damage and the conduct of each Defendant is a proximate cause of those injuries.

126. The independent negligent acts or omissions by each Defendant concurred to produce the Plaintiffs' injuries and the conduct of each is a proximate cause, even assuming *arguendo* that one Defendant may have been more or less negligent than another, which Plaintiffs' deny but expect may be alleged at some point by one or more Defendant.

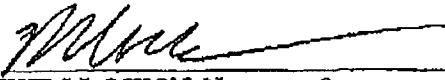
127. Defendants are jointly and severally liable for Plaintiffs' injuries.

WHEREFORE, the Plaintiffs pray the Court for relief as follows:

1. That Plaintiff, Marsha Jacobs, Administratrix of the Estate of Mitchell Lee Jacobs, have and recover judgment of and from the Defendants, for Negligence and the Wrongful Death of said Plaintiff's deceased intestate, jointly and severally, for those damages which said Plaintiff is entitled to recover pursuant to N.C.G.S. § 28A-18-2, in a sum in excess of TEN THOUSAND (\$10,000.00) DOLLARS, plus interest;
2. That Plaintiffs have and recover judgment of and from the Defendants jointly and severally, in a sum in excess of TEN THOUSAND (\$10,000.00) DOLLARS, plus interest;
3. That Plaintiff Moore have and recover judgment of and from the Defendants, for Medical Expenses of the Minor Plaintiff, jointly and severally in an amount to be determined at the trial of this matter;
4. That Plaintiff, Marsha Jacobs, Administratrix of the Estate of Mitchell Lee Jacobs, have and recover judgment of and from the Defendants for Punitive Damages, jointly and severally, in a sum in excess of \$10,000.00, plus interest;
5. That Plaintiffs have and recover judgment of and from the Defendants for Punitive Damages, jointly and severally, in a sum in excess of \$10,000.00, plus interest;
6. That the Plaintiffs have a jury trial on all issues of fact raised herein;
7. That the cost of this action be taxed by the Court against the Defendants, including a reasonable attorney's fee as provided by law; and
8. For such other and further relief as the Court may deem just and proper.

This the 1st day of March, 2012.

MATTHEW J. DIXON, PLLC

By: 
MATTHEW J. DIXON, No.: 24208
ATTORNEY FOR THE PLAINTIFFS
POST OFFICE BOX 3090
ELIZABETHTOWN, NC 28337
TELEPHONE: (910)872-0002
FACSIMILE: (910)872-0007
EMAIL: dixonlaw101@yahoo.com

ZAYTOUN LAW FIRM, PLLC

Robert Zaytoun, Esq., NC Bar #6942
Matthew D. Ballew, Esq., NC Bar # 39515
Attorneys for Plaintiffs
Zaytoun Law Firm
3130 Fairhill Drive, Suite 100
Raleigh, NC 27612
Telephone: 919-832-6690
Facsimile: 919-831-4793

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Do not write in these spaces

102800757

No. of Units Involved

Form 1 of 1

☒ Supplemental Report☐ Non-ReportableDate
02/21/2010County
COLUMBUSTime
14:28
(24 Hour Clock)Local Use/Patrol Area
100221083BA/A4Date Received by DMV
05/21/2010

33 Relation to

Roadway Surface

5

Crash occurred

☒ In

Near BOLTON

Municipality

☐ Ramp or

Service Road

(R.R. Crossing #

) 00.10

Miles

N

S

E

W

outside municipality

☐ N☐ S☐ E☐ W

ft.

N

S

E

W

(if available)

on RP 1740

Highway Number, or Highway, Street, (If ramp or service road, indicate on line)

from RP 1776

Use Highway Number, Street Name or Adjacent County or State Line

☐ N☐ S☐ E☐ W

low

down

RP 1876

Use Highway Number, Street Name or Adjacent County or State Line

Latitude

Longitude

Altitude

UNIT # 1 ☒ VEHICLE ☐ PEDESTRIAN ☐ HIT & RUN ☐ COMMERCIAL
20 VEHICLEDriver ☐ First ☐ Middle ☐ Last ☐ Suffix

Address

City COUNCIL State NC Zip

Same Address as Driver's Driver's Phone H () W ()

License? ☒ Yes ☐ No Numbers

D.L. State NC

DOB 34 Vision Obstruction 00 35 Physical Condition 01 36 D.L. Restrictions 0

37 Alcohol/ Drugs Suspected 0 38 Alcohol/ Drugs Test 0 39 Results (if known) 0 40 Vehicle Seizure (DWI) ☐Owner ☐ Same as Driver?

Address

City COUNCIL State NC Zip

Plate # Plate NC Plate 2011

VIN 1G1AK55F767

Vehicle CHEV Vehicle 2006 41 Vehicle Style (Type) 1 42 Vehicle Drivable ☒ Yes ☐ No

43 TAD FD-6 44 Estimated Damage \$6500

Insurance INTEGON

Policy #

20 COMMERCIAL VEHICLE: Cargo, Carrier Name, Address, Source

45 Cargo Body Type ☐ Same Address as Owner?

Source:

☐ Truck☐ Shipping papers☐ Driver

Carrier Identification Numbers, GVWR, Axles

US DOT# ICC#

State State# IFTA#

FE# Fleet# Gross Vehicle Weight Rating

21 22 23 24 25 26 27 28 29 30 31 32 Names and Addresses for All Persons (Unit 1/Unit 2 Drv, Ped, etc. - See Above); Use check blocks if address same as Driver

A	1	1	1	Unit 1-Drv 1, Ped 1, etc. see above	N	M	0	2	0	2	1	1	see above	Unit 1 Towed To/By: SOUTHERN TIRE/SOUTHERN TIRE
B				Unit 2-Drv 2, Ped 2, etc. see above									see above	Unit 2 Towed To/By:
C	1	2	3		N	F	2	2	0	2	1	2		BOLTON, NC
D	1	2	6		N	M	4	2	0	2	1	4		BOLTON, NC
E														
F														
G														
H														

46 Name of EMS ACD-COLUMBUS CO. EMS

46 Name of EMS

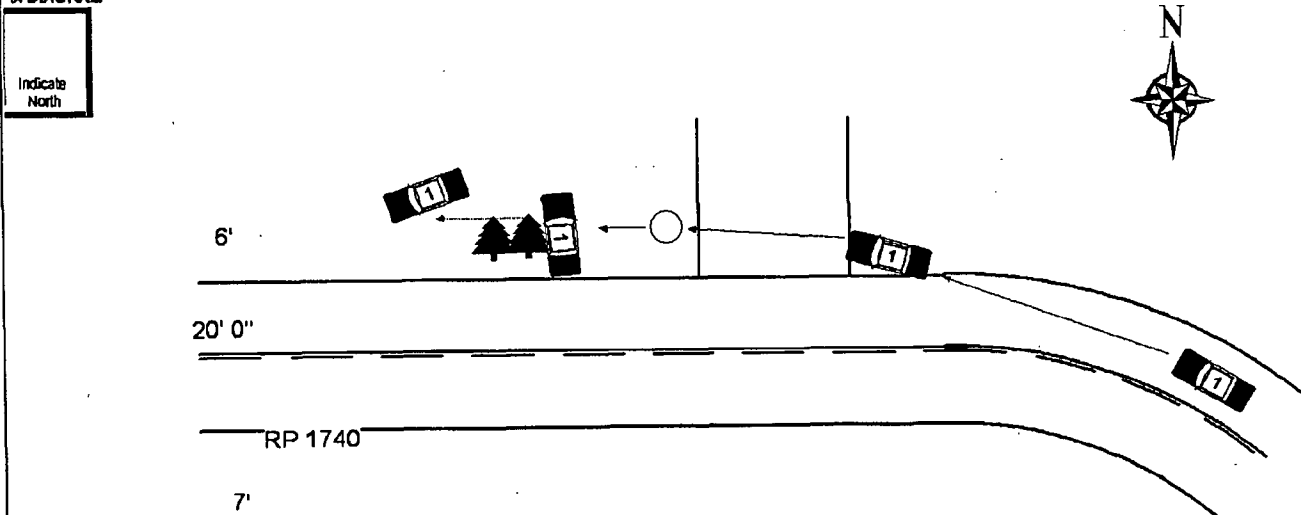
47 Injured Taken COLUMBUS REGIONAL WHITEVILLE
by EMS to (Treatment Facility and City or Town)47 Injured Taken
by EMS to (Treatment Facility and City or Town)

102800757 - 1

TA000122497

48 POINTS OF INITIAL CONTACT (Write in Codes) Unit# <u>1</u> <u>1</u> <u>2</u> <u>3</u> Unit# <u> </u> <u> </u> <u> </u> <u> </u>		VEHICLE INFO.		Veh # <u>1</u>	Veh # <u> </u>	ROADWAY INFO.		WORK ZONE RELATED	
CRASH SEQUENCE (Unit Level)		Unit# <u>1</u>	Unit# <u> </u>	60 Authorized Speed Limit	<u>55</u>	69 Road Feature	<u>0</u>	78 Workzone Area	<u>5</u>
49 Vehicle Maneuver/Action	<u>4</u>			61 Estimate of Original Traveling Speed	<u>55</u>	70 Road Character	<u>5</u>	79 Work Activity	
50 Non-Motorist Action				62 Estimate of Speed at Impact	<u>55</u>	71 Road Classification	<u>4</u>	80 Work Area Marked	
51 Non-Motorist Location Prior to Impact				63 Tire Impressions Before Impact (ft.)	<u>35</u>	72 Road Surface Type	<u>3</u>	81 Crash Location	
52 Crash Sequence - First Event for This Unit	<u>1</u>			64 Distance Traveled After Impact (ft.)	<u>53</u>	73 Road Configuration	<u>2</u>	TRAILER INFO. Unit# <u>1</u> Unit# <u> </u>	
53 Crash Sequence - Second Event	<u>56</u>			65 Emergency Vehicle Use		74 Access Control	<u>1</u>	82 Trailer Type	<u>00</u>
54 Crash Sequence - Third Event	<u>33</u>			66 Post Crash Fire (if "Yes" check block)	☐	75 Number of Lanes	<u>2</u>	1st Trailer No. Axes	
55 Crash Sequence - Fourth Event				67 School Bus - Contact Vehicle	☐	76 Traffic Control Type	<u>0</u>	Width (inches)	
56 Most Harmful Event for This Unit	<u>56</u>			68 School Bus - Noncontact Vehicle	☐	77 Traffic Control Oper		Length (feet)	
57 Distance/Direction to Object Struck	<u>2</u>			COMMERCIAL VEHICLE: Hazardous Materials Involvement Haz Mat Placard ☐ Yes ☐ No From Placard indicates: Hazardous Cargo ☐ Yes ☐ No 4-digit placard number or name from diamond or box 1-digit number from bottom of diamond Released (does not include fuel from fuel tank) Carrying Haz Mat ☐ Yes ☐ No			2nd Trailer No. Axes		
58 Vehicle Under/Over/Under	<u>3</u>						Width (inches)		
59 Vehicle Defects	<u>0</u>						Length (feet)		
							83 Unit# <u> </u>	Overwidth Trailer and Overwidth Mobile Home	Overwidth Permit # <u> </u>

64 DIAGRAM



Unit# 1 was: ☒ Traveling ☐ Parked Facing N S E W on RP 1740 Unit# was: ☐ Traveling ☐ Parked Facing N S E W on

65 NARRATIVE (Include pertinent and unusual aspects, which are not listed elsewhere on the form) **VEHICLE# 1 WAS TRAVELING WEST ON RP 1740. THE DRIVER OF VEHICLE# 1 TRAVELED OFF TO THE RIGHT SHOULDER COLLIDING WITH A CULVERT. VEHICLE# 1 THEN OVERTURNED COLLIDING WITH A TREE. VEHICLE# 1 CAME TO REST RIGHT SIDE UP IN A YARD AFTER IMPACT. *NOTE THE DRIVER OF VEHICLE# 1 DECEASED ON MARCH 03, 2010 AT 2:30PM AT NEW HANOVER REGIONAL MEDICAL**

66 Type/Owner	Owner Address	ADDITIONAL PROPERTY DAMAGE	State	Property?	Estimated Damage
<u> </u>	<u> </u>	<u>BOLTON, NC</u>	<u>NC</u>	☐	<u>\$200</u>
WITNESSES					
Name	Address	<u>BOLTON, NC 28423</u>	Phone No.	<u> </u>	
Name	Address	Phone No. () <u> </u>			
TRAFFIC VIOLATION(S)					
Name	Charge(s)				
Name	(Citation # optional)				
Name	Charge(s)				
Officer Name		Officer Number	Department	Date of Report	
<u>R L Hester</u>		<u>1137</u>	<u>North Carolina State Highway P</u>	<u>02/21/2010</u>	

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1

Do not write in these spaces

102800757

No. of Units Involved

Form 1 of 1

☐ Supplemental Report☐ Non-ReportableDate
02/21/2010County
COLUMBUSTime
14:28
(24 Hour Clock)Local Use/Patrol Area
100221083BA/A4

Date Received by DMV

02/25/2010

33 Relation to
Roadway Surface

5

Crash
occurred☒

In

Near

BOLTON

Municipality

☐Ramp or
Service Road☐

(R.R. Crossing #

)

00.10

Miles

N

S

E

W

outside municipality

☐☐☐☐☐☐☐☐☐☐☐☐☐☐☐☐☐

RP 1740

Highway Number, or Highway, Street, (If ramp or service road, indicate on line)

RP 1776

Use Highway Number, Street Name or Adjacent County or State Line

☐☐☒☐

toward

RP 1876

Use Highway Number, Street Name or Adjacent County or State Line

N

S

E

W

Latitude

Longitude

Altitude

UNIT # 1

☒ VEHICLE☐ PEDESTRIAN☐ HIT & RUN☐ COMMERCIAL

20 VEHICLE

Driver

Last

Suffix

Address

City COUNCIL

State NC

Zip

Same Address as Driver's

License?

☐ Yes☐ No

Driver's

Phone

Numbers

W (

)

D.L.

COL License

☐

DOB

34 Vision

Obstruction

00

35 Physical

Condition

10

36 D.L.

Restrictions

0

37 Alcohol/

Drugs Suspected

7

38 Alcohol/

Drugs Test

0

39 Results

(if known)

6

40 Vehicle

Seizure (DWI)

☐

Owner

Last

Suffix

Address

City COUNCIL

State NC

Zip

Plate #

Plate NC

Plate 2011

State

Year

VIN

1G1AK55F7677

Vehicle

Make

CHEV

Vehicle

Year

2006

41 Vehicle

Style (Type)

1

42 Vehicle

Driveable

☒ Yes☐ No

43 TAD

FD-6

44 Estimated

Damage

\$6500

Insurance

Company

INTEGON

Policy #

20 COMMERCIAL VEHICLE: Cargo, Carrier Name, Address, Source

45 Cargo Body Type

☐ Same Address as Owner?

Source:

☐ Truck☐ Shipping

papers

☐ Driver

Carrier Identification Numbers, GVWR, Axles

US DOT#

ICC#

Axles on Vehicle

including Trailers

State

State#

IFTA#

FE#

Fleet#

Gross Vehicle

Weight Rating

21

22

23

24

25

26

27

28

29

30

31

32

Names and Addresses for All Persons (Unit 1/Unit 2 Drv, Ped, etc. - See Above); Use check blocks if address same as Driver

A	1	1	1	Unit 1-Drv 1, Ped 1, etc.	N	M	0	2	0	2	1	2	see above	Unit 1 Towed To/By:
B				Unit 2-Drv 1, Ped 2, etc.									see above	Unit 2 Towed To/By:
C	1	2	3		N	F	2	2	0	2	1	2		BOLTON, NC 28423
D	1	2	6		N	M	4	2	0	2	1	4		BOLTON, NC 28423
E														
F														
G														
H														

46 Name of EMS ACD-COLUMBUS CO. EMS

46 Name of EMS

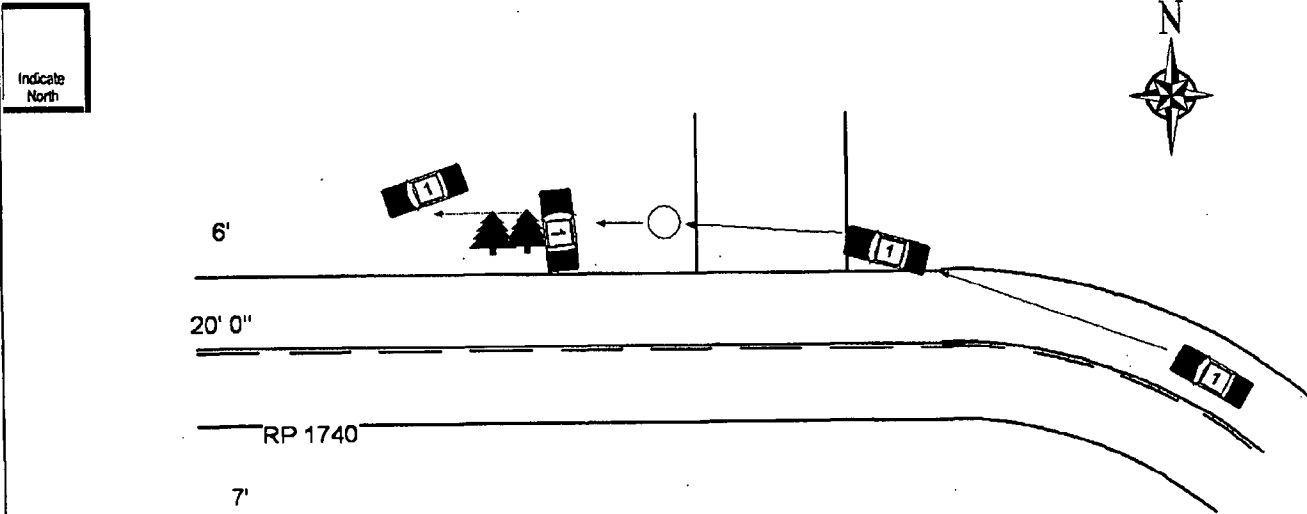
47 Injured Taken COLUMBUS REGIONAL WHITEVILLE
by EMS to (Treatment Facility and City or Town)47 Injured Taken
by EMS to (Treatment Facility and City or Town)

102800757 - 1

TA000122499

48 POINTS OF INITIAL CONTACT (Write in Codes) Unit# <u>1</u> <u>1</u> <u>2</u> <u>3</u>		VEHICLE INFO.		Veh # <u>1</u>	Value	ROADWAY INFO.		WORK ZONE RELATED	
49 CRASH SEQUENCE (Unit Level)		Unit# <u>1</u>	Unit#	50 Authorized Speed Limit	<u>55</u>	59 Road Feature	<u>0</u>	78 Workzone Area	<u>5</u>
49 Vehicle Maneuver/Action	<u>4</u>			61 Estimate of Original Traveling Speed	<u>55</u>	70 Road Character	<u>5</u>	79 Work Activity	
50 Non-Motorist Action				62 Estimate of Speed at Impact	<u>55</u>	71 Road Classification	<u>4</u>	80 Work Area Marked	
51 Non-Motorist Location Prior to Impact				63 Tire Impressions Before Impact (ft.)	<u>35</u>	72 Road Surface Type	<u>3</u>	81 Crash Location	
52 Crash Sequence - First Event for This Unit	<u>1</u>			64 Distance Traveled After Impact (ft.)	<u>53</u>	73 Road Configuration	<u>2</u>	TRAILER INFO.	
53 Crash Sequence - Second Event	<u>56</u>			65 Emergency Vehicle Use		74 Access Control	<u>1</u>	82 Trailer Type	Unit# <u>1</u> Unit#
54 Crash Sequence - Third Event	<u>33</u>			66 Post Crash Fire (If "Yes" check box)	☐	75 Number of Lanes	<u>2</u>	1st Trailer No. Axles	<u>00</u>
55 Crash Sequence - Fourth Event				67 School Bus - Contact Vehicle	☐	76 Traffic Control Type	<u>0</u>	Width (inches)	
56 Most Harmful Event for This Unit	<u>56</u>			68 School Bus - Noncontact Vehicle	☐	77 Traffic Control Oper		Length (feet)	
57 Distance/Direction to Object Struck	<u>2</u>			COMMERCIAL VEHICLE: Hazardous Materials Involvement				2nd Trailer No. Axles	
58 Vehicle Undercarriage/Override	<u>3</u>			Haz Mat Placard ☐ Yes ☐ No Hazardous Cargo ☐ Yes ☐ No Released (does not include fuel from fuel tank) ☐ Yes ☐ No Carrying Haz Mat ☐ Yes ☐ No				Width (inches)	
59 Vehicle Defects	<u>0</u>			From Placard indicates: 4-digit placard number or name from diamond or box 1-digit number from bottom of diamond				Length (feet)	
				83 Unit# <u>1</u> Overwidth Trailer and Overwidth Mobile Home			Overwidth Permit #		

84 DIAGRAM



Unit# 1 was: ☒ Traveling ☐ Parked Facing N S E W on RP 1740 Unit# 1 was: ☐ Traveling ☐ Parked Facing N S E W on

85 NARRATIVE (Include pertinent and unusual aspects, which are not listed elsewhere on the form) VEHICLE# 1 WAS TRAVELING WEST ON RP 1740. THE DRIVER OF VEHICLE# 1 TRAVELED OFF TO THE RIGHT SHOULDER COLLIDING WITH A CULVERT. VEHICLE# 1 THEN OVERTURNED COLLIDING WITH A TREE. VEHICLE# 1 CAME TO REST RIGHT SIDE UP IN A YARD AFTER IMPACT.

86 Type/Owner: BOLTON, NC Owner Address: BOLTON, NC Phone: BOLTON, NC State: NC Property? ☐ Estimated Damage: \$200

WITNESSES: Name: BOLTON, NC Address: BOLTON, NC Phone No.: BOLTON, NC

TRAFFIC VIOLATION(S):

Name: R L Hester Charge(s): 1137 Officer Number: 1137 Department: North Carolina State Highway P Date of Report: 02/21/2010

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1

Do not write in these spaces

102800757

No. of Units Involved

Form 1 of 1

☒ Supplemental Report☐ Non-ReportableDate
02/21/2010County
COLUMBUSTime
14:28
(24 Hour Clock)Local Use/Patrol Area
100221083BA/A4Date Received by DMV
03/07/201033 Relation to
Roadway Surface

5

Crash occurred

☒ In

Near BOLTON

Municipality

☐ Ramp or
Service Road

(R.R. Crossing #

00.10

Miles

N S E W

☒ ☐ ☐ outside municipality

on RP 1740

Highway Number, or Highway, Street, (If ramp or service road, indicate on line)

from RP 1776

Use Highway Number, Street Name or Adjacent County or State Line

☐ ☒ ☐ N S E W

low 270 RP 1876

Use Highway Number, Street Name or Adjacent County or State Line

Latitude

Longitude

Altitude

UNIT #1 ☒ VEHICLE ☐ PEDESTRIAN ☐ HIT & RUN ☐ COMMERCIAL
20 VEHICLE

Driver

Address

City COUNCIL State NC Zip

Same Address on Driver's Driver's H ()

License? ☐ Yes ☐ No Phone Numbers W ()

D.L. # State NC

DOB 34 Vision Obstruction 00 35 Physical Condition 10 36 D.L. Restrictions 0

37 Alcohol/ Drugs Suspected 7 38 Alcohol/ Drugs Test 0 39 Results (If known) 6 40 Vehicle Seizure (DWI) ☐

Owner

Address

Same Address as Driver? ☐

City COUNCIL State NC Zip

Plate # Plate NC Plate 2011

VIN 1G1AK55F7677

Vehicle Make CHEV Vehicle Year 2006 41 Vehicle Style (Type) 1 42 Vehicle Drivable ☒ Yes ☐ No

43 TAD FD-6 44 Estimated Damage \$6500

Insurance INTEGON

Company

Policy #

UNIT # ☐ VEHICLE ☐ PEDESTRIAN ☐ HIT & RUN ☐ OTHER

Driver

Address

City State Zip

Same Address on Driver's Driver's H ()

License? ☐ Yes ☐ No Phone Numbers W ()

D.L. # State

DOB 34 Vision Obstruction 35 Physical Condition 36 D.L. Restrictions

37 Alcohol/ Drugs Suspected 38 Alcohol/ Drugs Test 39 Results (If known) 40 Vehicle Seizure (DWI) ☐

Owner

Address

Same Address as Driver? ☐

City State Zip

Plate # Plate State Plate Year

VIN

Vehicle Make Vehicle Year 41 Vehicle Style (Type) 42 Vehicle Drivable ☐ Yes ☐ No

43 TAD 44 Estimated Damage \$

Insurance

Company

Policy #

20 COMMERCIAL VEHICLE: Cargo, Carrier Name, Address, Source

46 Cargo Body Type

☐ Same Address as Owner?

Source:

☐ Truck☐ Shipping papers☐ Driver

Carrier Identification Numbers, GVWR, Axles

US DOT#

ICC#

Axles on Vehicle including Trailers

State State#

IFTA#

FE#

Fleet#

Gross Vehicle Weight Rating

21 22 23 24 25 26 27 28 29 30 31 32 Names and Addresses for All Persons (Unit 1/Unit 2 Div, Ped, etc. - See Above); Use check blocks if address same as Driver

A	1	1	1	Unit 1-Div 1, Ped 1, etc. see above	N	M	0	2	0	2	1	1	one driver	Vehicle 1 Towed To/By:
B				Unit 2-Div 2, Ped 2, etc. see above									see above	Vehicle Towed To/By:
C	1	2	3		N	F	2	2	0	2	1	2		BOLTON, NC
D	1	2	6		N	M	4	2	0	2	1	4		BOLTON, NC
E														
F														
G														
H														

46 Name of EMS ACD-COLUMBUS CO. EMS

46 Name of EMS

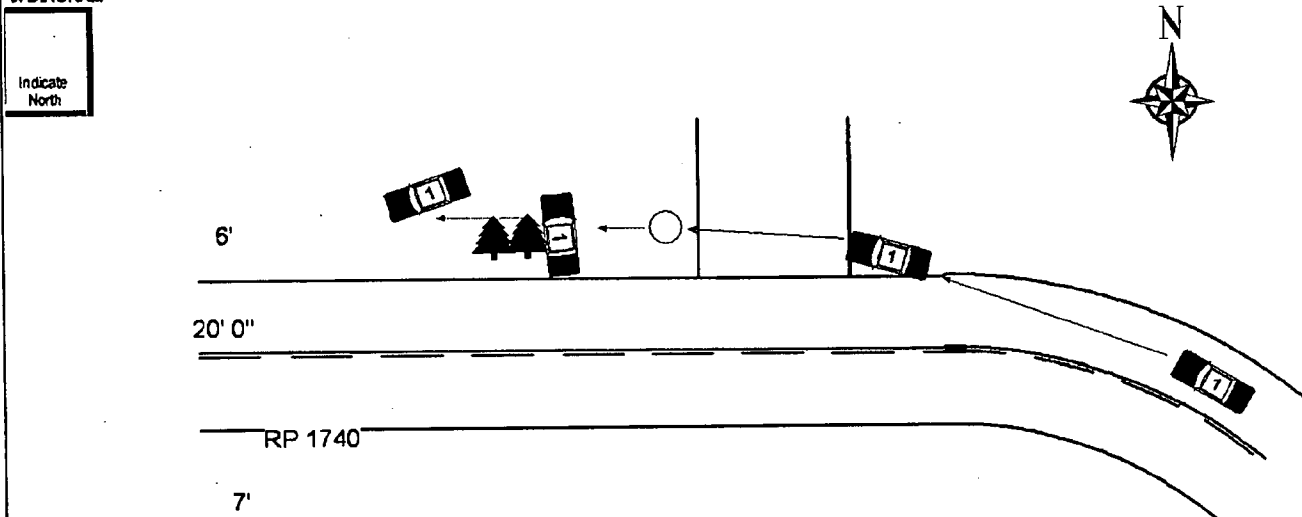
47 Injured Taken COLUMBUS REGIONAL WHITEVILLE
by EMS to (Treatment Facility and City or Town)47 Injured Taken
by EMS to (Treatment Facility and City or Town)

102800757 - 1

TA000122501

48 POINTS OF INITIAL CONTACT (Write in Codes) Unit <u>1</u> <u>1</u> <u>2</u> <u>3</u> Unit <u> </u> <u> </u> <u> </u> <u> </u>			VEHICLE INFO.		Unit <u>1</u>	Unit <u> </u>	ROADWAY INFO.		WORK ZONE RELATED	
CRASH SEQUENCE (Unit Level)			Unit <u>1</u>	Unit <u> </u>	60 Authorized Speed Limit	55	69 Road Feature	0	76 Workzone Area	5
49 Vehicle Maneuver/Action			4		61 Estimate of Original Traveling Speed	55	70 Road Character	5	79 Work Activity	
50 Non-Motorist Action					62 Estimate of Speed at Impact	55	71 Road Classification	4	80 Work Area Marked	
51 Non-Motorist Location Prior to Impact					63 Tire Impressions Before Impact (ft.)	35	72 Road Surface Type	3	81 Crash Location	
52 Crash Sequence - First Event for This Unit			1		64 Distance Traveled After Impact (ft.)	53	73 Road Configuration	2	TRAILER INFO. Unit <u>1</u> Unit <u> </u>	
53 Crash Sequence - Second Event			56		65 Emergency Vehicle Use		74 Access Control	1	82 Trailer Type	00
54 Crash Sequence - Third Event			33		66 Post Crash Fire (If "Yes" check block)	☐	75 Number of Lanes	2	1st Trailer No. Axles	
55 Crash Sequence - Fourth Event					67 School Bus - Contact Vehicle	☐	76 Traffic Control Type	0	Width (inches)	
56 Most Harmful Event for This Unit			56		68 School Bus - Noncontact Vehicle	☐	77 Traffic Control Oper		Length (feet)	
57 Distance/Direction to Object Struck			2		COMMERCIAL VEHICLE: Hazardous Materials Involvement Haz Mat Placard ☐ Yes ☐ No From Placard indicate: Hazardous Cargo ☐ Yes ☐ No 4-digit placard number or 1-digit number from Released (does not include fuel from fuel tanks) name from diamond or box bottom of diamond Carrying Haz Mat ☐ Yes ☐ No					
58 Vehicle Underride/Overide			3							
59 Vehicle Defects			0							
83 Unit <u> </u> Overwidth Trailer and Overwidth Mobile Home					85 Unit <u> </u> Overwidth Permit # <u> </u>					

84 DIAGRAM



Unit 1 was: ☒ Traveling ☐ Parked Facing N S E W on RP 1740 Unit was: ☐ Traveling ☐ Parked Facing N S E W on

85 NARRATIVE (Include pertinent and unusual aspects, which are not listed elsewhere on the form) **VEHICLE# 1 WAS TRAVELING WEST ON RP 1740. THE DRIVER OF VEHICLE# 1 TRAVELED OFF TO THE RIGHT SHOULDER COLLIDING WITH A CULVERT. VEHICLE# 1 THEN OVERTURNED COLLIDING WITH A TREE. VEHICLE# 1 CAME TO REST RIGHT SIDE UP IN A YARD AFTER IMPACT. *NOTE THE DRIVER OF VEHICLE# 1 DECEASED ON MARCH 03, 2010 AT 2:30PM AT NEW HANOVER REGIONAL MEDICAL**

86 Type <u> </u>	Owner Address <u> </u>	State <u> </u>	Property? ☐	Estimated Damage <u>\$200</u>
Owner <u> </u>	Phone <u> </u>	<u>BOLTON, NC</u>		
WITNESSES				
Name <u> </u>	Address <u> </u>	<u>BOLTON, NC</u>	Phone No. <u> </u>	
Name <u> </u>	Address <u> </u>		Phone No. <u> </u>	
TRAFFIC VIOLATION(S) <u> </u>				
Name <u> </u>	Charge(s) <u> </u>			
Name <u> </u>	(Citation # optional) <u> </u>			
Name <u> </u>	Charge(s) <u> </u>			
Officer Name <u>R L Hester</u>	Officer Number <u>1137</u>	Department <u>North Carolina State Highway P</u>	Date of Report <u>02/21/2010</u>	

102800757

1

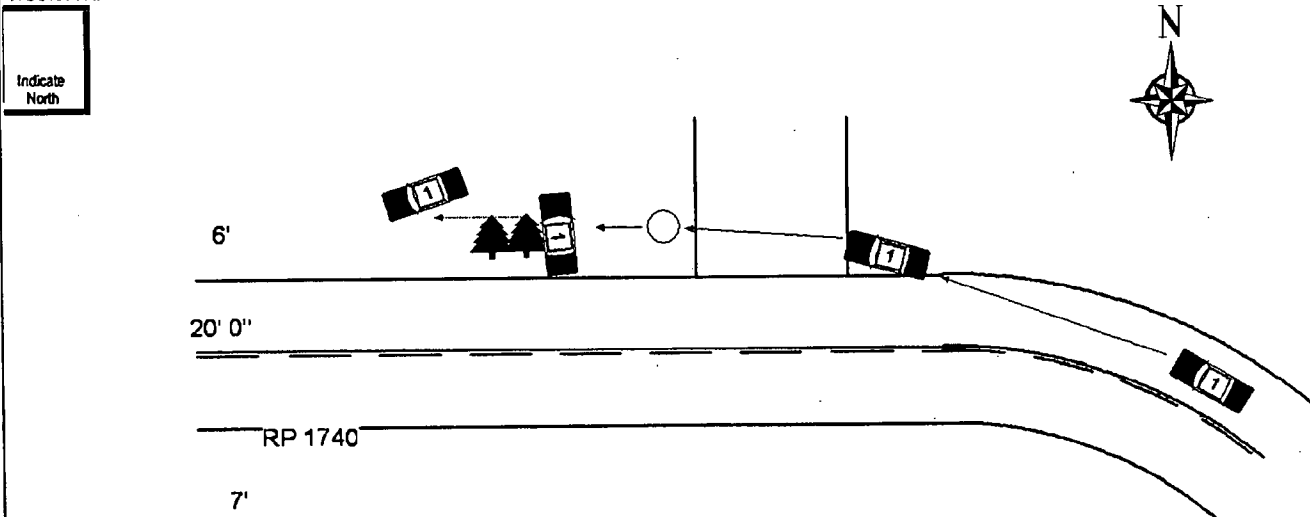
46 Name of EMS

**47 Injured Taken
by EMS to**

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48 POINTS OF INITIAL CONTACT (Write in Codes) Unit# <u>1</u> <u>1</u> <u>2</u> <u>3</u> Under _____		VEHICLE INFO.		Veh # <u>1</u>	Veh # _____	ROADWAY INFO.		WORK ZONE RELATED	
CRASH SEQUENCE (Unit Level)		Unit# <u>1</u>	Units _____	80 Authorized Speed Limit	<u>55</u>	86 Road Feature	<u>0</u>	76 Workzone Area	<u>5</u>
49 Vehicle Maneuver/Action	<u>4</u>			81 Estimate of Original Traveling Speed	<u>55</u>	70 Road Character	<u>5</u>	79 Work Activity	
50 Non-Motorist Action				82 Estimate of Speed at Impact	<u>55</u>	71 Road Classification	<u>4</u>	80 Work Area Marked	
51 Non-Motorist Location Prior to Impact				83 Tire Impressions Before Impact (ft.)	<u>35</u>	72 Road Surface Type	<u>3</u>	81 Crash Location	
52 Crash Sequence - First Event for This Unit	<u>1</u>			84 Distance Traveled After Impact (ft.)	<u>53</u>	73 Road Configuration	<u>2</u>	TRAILER INFO. Unit# <u>1</u> Unit# _____	
53 Crash Sequence - Second Event	<u>56</u>			85 Emergency Vehicle Use		74 Access Control	<u>1</u>	82 Trailer Type	<u>00</u>
54 Crash Sequence - Third Event	<u>33</u>			86 Post Crash Fire (If "Yes" check block)	☐	75 Number of Lanes	<u>2</u>	1st Trailer No. Axles	
55 Crash Sequence - Fourth Event				87 School Bus - Contact Vehicle	☐	76 Traffic Control Type	<u>0</u>	Width (inches)	
56 Most Harmful Event for This Unit	<u>56</u>			88 School Bus - Noncontact Vehicle	☐	77 Traffic Control Oper		Length (feet)	
57 Distance/Direction to Object Struck	<u>2</u>			COMMERCIAL VEHICLE: Hazardous Materials Involvement Haz Mat Placard ☐ Yes ☐ No From Placard indicate: Hazardous Cargo ☐ Yes ☐ No 4-digit placard number or name from diamond or box Released (does not include fuel from fuel tank) 1-digit number from bottom of diamond Carrying Haz Mat ☐ Yes ☐ No			2nd Trailer No. Axles		
58 Vehicle Underlides/Overlides	<u>3</u>						Width (inches)		
59 Vehicle Defects	<u>0</u>						Length (feet)		
			83 Unit# _____				Overwidth Trailer and Overwidth Mobile Home		

64 DIAGRAM



Unit# 1 was: ☒ Traveling ☐ Parked Facing N S E W on RP 1740 Unit# _____ was: ☐ Traveling ☐ Parked Facing N S E W on _____

65 NARRATIVE (Include pertinent and unusual aspects, which are not listed elsewhere on the form) **VEHICLE# 1 WAS TRAVELING WEST ON RP 1740. THE DRIVER OF VEHICLE# 1 TRAVELED OFF TO THE RIGHT SHOULDER COLLIDING WITH A CULVERT. VEHICLE# 1 THEN OVERTURNED COLLIDING WITH A TREE. VEHICLE# 1 CAME TO REST RIGHT SIDE UP IN A YARD AFTER IMPACT. *NOTE THE DRIVER OF VEHICLE# 1 DECEASED ON MARCH 03, 2010 AT 2:30PM AT NEW HANOVER REGIONAL MEDICAL**

86 Type/Owner	Owner Address	City	State	Property?	Estimated Damage
		<u>BOLTON, NC</u>	<u>NC</u>	☐	<u>\$200</u>
WITNESSES					
Name	Address	City	State	Phone No.	
		<u>BOLTON, NC</u>			
TRAFFIC VIOLATION(S)					
Name	Charge(s)	Officer Number	Department	Date of Report	
		<u>1137</u>	<u>North Carolina State Highway P</u>	<u>02/21/2010</u>	
Officer Name <u>R L Hester</u>					

THIS REPORT IS FOR THE USE OF THE DIVISION OF MOTOR VEHICLES. THE DATA IS COLLECTED FOR STATISTICAL ANALYSIS AND SUBSEQUENT HIGHWAY SAFETY PROGRAMMING. DETERMINATIONS OF "FAULT" ARE THE RESPONSIBILITY OF INSURERS OR OF THE STATE'S COURTS.

1

Do not write in these spaces

102800757

No. of Units Involved

Form 1 of 1

☒ Supplemental Report☐ Non-ReportableDate
02/21/2010County
COLUMBUSTime
14:28
(24 Hour Clock)Local Use/Patrol Area
100221083BA/A4Date Received by DMV
03/11/2010

33 Relation to

Roadway Surface

5

Crash occurred

☒ In

Near

BOLTON

Municipality

☐

Ramp or

Service Road

(R.R. Crossing #

) 00.10

Miles

(D.R. Intersection)

outside municipality

R. N S E W

on RP 1740

Highway Number, or Highway, Street, (If ramp or service road, indicate on line)

from RP 1776

Use Highway Number, Street Name or Adjacent County or State Line

☐

N S E W

Lowest RP 1876

Use Highway Number, Street Name or Adjacent County or State Line

Latitude

Longitude

Altitude

UNIT # 1 ☒ VEHICLE ☐ PEDESTRIAN ☐ HIT & RUN ☐ COMMERCIAL
20 VEHICLEUNIT # ☐ VEHICLE ☐ PEDESTRIAN ☐ HIT & RUN ☐ OTHER

Driver

First Middle Last Suffix

Address

City COUNCIL State NC Zip

Same Address on Driver's Driver's H ()

License? ☒ Yes ☐ No Phone Numbers W ()

D.L. # State NC

DOB ☐ CDL License ☐

34 Vision Obstruction 00 35 Physical Condition 01 36 D.L. Restrictions 0

37 Alcohol/ Drugs Suspected 0 38 Alcohol/ Drugs Test 0 39 Results (if known) 0 40 Vehicle Seizure (DWI) ☐

Owner

Address

Same Address as Driver? ☐

City COUNCIL State NC Zip

Plate # Plate NC Plate 2011

VIN

Vehicle Make CHEV Vehicle Year 2006 41 Vehicle Style (Type) 1 42 Vehicle Drivable ☒ Yes ☐ No

43 TAD FD-6 44 Estimated Damage \$6500

Insurance INTEGON

Company

Policy #

Driver

First Middle Last Suffix

Address

City State Zip

Same Address on Driver's Driver's H ()

License? ☐ Yes ☐ No Phone Numbers W ()

D.L. # State

DOB ☐ CDL License ☐

34 Vision Obstruction 35 Physical Condition 36 D.L. Restrictions

37 Alcohol/ Drugs Suspected 38 Alcohol/ Drugs Test 39 Results (if known) 40 Vehicle Seizure (DWI) ☐

Owner

Address

Same Address as Driver? ☐

City State Zip

Plate # Plate State Plate Year

VIN

Vehicle Make Vehicle Year 41 Vehicle Style (Type) 42 Vehicle Drivable ☐ Yes ☐ No

43 TAD 44 Estimated Damage \$

Insurance

Company

Policy #

20 COMMERCIAL VEHICLE: Cargo, Carrier Name, Address, Source

45 Cargo Body Type ☐ Same Address as Owner?

Source:

☐ Truck☐ Shipping papers☐ Driver

Carrier Identification Numbers, GVWR, Axles

US DOT# ICC# Axles on Vehicle including Trailers

State State# IFTA#

FE# Fleet# Gross Vehicle Weight Rating

21 22 23 24 25 26 27 28 29 30 31 32 Names and Addresses for All Persons (Unit 1/Unit 2 Drv, Ped, etc. - See Above); Use check blocks if address same as Driver

A	1	1	1	Unit 1-Drv 1, Ped 1, etc. see above	N	M	0	2	0	2	1	1	see above	Unit 1 Towed To/By: SOUTHERN TIRE/SOUTHERN TIRE
B				Unit 2-Drv 2, Ped 2, etc. see above									see above	Unit 2 Towed To/By:
C	1	2	3		N	F	2	2	0	2	1	2		BOLTON, NC
D	1	2	6		N	M	4	2	0	2	1	4		BOLTON, NC
E														
F														
G														
H														

46 Name of EMS ACD-COLUMBUS CO. EMS

46 Name of EMS

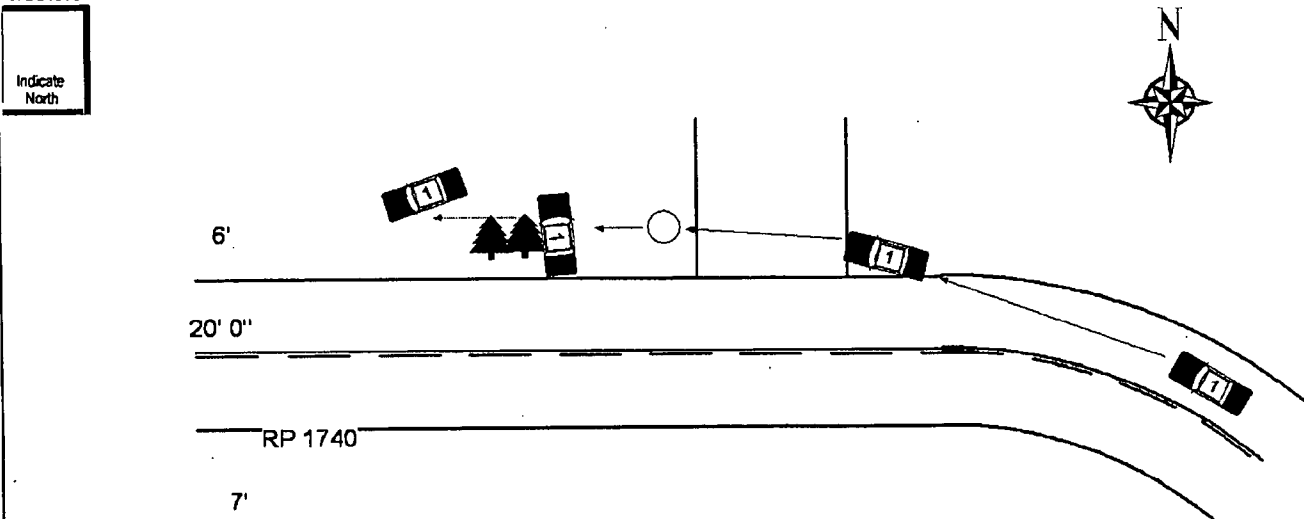
47 Injured Taken COLUMBUS REGIONAL, WHITEVILLE
by EMS to (Treatment Facility and City or Town)47 Injured Taken
by EMS to (Treatment Facility and City or Town)

102800757 - 1

TA000122505

48 POINTS OF INITIAL CONTACT (Write in Codes)		Unit <u>1</u> <u>1</u> <u>2</u> <u>3</u>	VEHICLE INFO.		Veh # <u>1</u>	Veh # <u> </u>	ROADWAY INFO.		WORK ZONE RELATED	
CRASH SEQUENCE (Unit Level)			60 Authorized Speed Limit	55	68 Road Feature	0	78 Workzone Area	5		
49 Vehicle Maneuver/Action			61 Estimate of Original Traveling Speed	55	70 Road Character	5	79 Work Activity			
50 Non-Motorist Action			62 Estimate of Speed at Impact	55	71 Road Classification	4	80 Work Area Marked			
51 Non-Motorist Location Prior to Impact			63 Tire Impressions Before Impact (ft.)	35	72 Road Surface Type	3	81 Crash Location			
52 Crash Sequence - First Event for This Unit			64 Distance Traveled After Impact (ft.)	53	73 Road Configuration	2	TRAILER INFO.		Unit <u>1</u>	Unit <u> </u>
53 Crash Sequence - Second Event			65 Emergency Vehicle Use		74 Access Control	1	82 Trailer Type	00		
54 Crash Sequence - Third Event			66 Post Crash Fire (if "Yes" check block)	☐	75 Number of Lanes	2	1st Trailer No. Axles			
55 Crash Sequence - Fourth Event			67 School Bus - Contact Vehicle	☐	76 Traffic Control Type	0	Width (inches)			
56 Most Harmful Event for This Unit			68 School Bus - Noncontact Vehicle	☐	77 Traffic Control Oper		Length (feet)			
57 Distance/Direction to Object Struck			COMMERCIAL VEHICLE: Hazardous Materials Involvement			2nd Trailer No. Axles				
58 Vehicle Under/Overide			Haz Mat Placard ☐ Yes ☐ No			Width (inches)				
59 Vehicle Defects			Hazardous Cargo ☐ Yes ☐ No			Length (feet)				
			Released (does not include fuel from fuel tank)			4-digit placard number or name from diamond or box		1-digit number from bottom of diamond		
			Carrying Haz Mat ☐ Yes ☐ No			83 Unit Overwidth Trailer and Overwidth Mobile Home		Overwidth Permit #		

DIAGRAM



Unit 1 was: ☒ Traveling ☐ Parked Facing N S E W on RP 1740 Unit was: ☐ Traveling ☐ Parked Facing N S E W on

65 NARRATIVE (Include pertinent and unusual aspects, which are not listed elsewhere on the form) VEHICLE# 1 WAS TRAVELING WEST ON RP 1740. THE DRIVER OF VEHICLE# 1 TRAVELED OFF TO THE RIGHT SHOULDER COLLIDING WITH A CULVERT. VEHICLE# 1 THEN OVERTURNED COLLIDING WITH A TREE. VEHICLE# 1 CAME TO REST RIGHT SIDE UP IN A YARD AFTER IMPACT. *NOTE THE DRIVER OF VEHICLE# 1 DECEASED ON MARCH 03, 2010 AT 2:30PM AT NEW HANOVER REGIONAL MEDICAL

66 Type/Owner Owner Address State BOLTON, NC Estimated Damage \$200

WITNESSES Name Address BOLTON, NC Phone No.

TRAFFIC VIOLATION(S) Name Charge(s)

Name Charge(s)

Officer Name R L Hester Officer Number 1137 Department North Carolina State Highway P Date of Report 02/21/2010